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TITLE 5—ADMINISTRATIVE PERSONNEL

Chapter I—Civil Service Commission

PART 54—ANNUAL AND SICK LEAVE REGULATIONS

ACCRUAL OF ANNUAL AND SICK LEAVE

In the FEDERAL REGISTER of February 25, 1947, Chapter I was revised and certain parts, including Part 54, were redesignated effective May 1, 1947 (12 F. R. 1270, 1343). These amendments to Part 54 are to be carried over on May 1, the effective date of the redesignation. These amendments shall be effective upon publication in the FEDERAL REGISTER.

Paragraph (c) of § 54.201 *Accrual of annual leave* (redesignated as § 30.201 (c) effective May 1, 1947) is hereby revoked.

1. A new paragraph (d) is added to § 54.301 (redesignated as § 30.301 effective May 1, 1947) as follows:

§ 54.301—*Accrual of sick leave.* * * *

(d) Because of the difference in crediting sick leave to temporary and permanent employees the following method shall be followed in crediting sick leave when a temporary appointment is converted to a permanent appointment prior to the end of the service month: Service as a permanent employee shall be counted as temporary service for the purpose of completing the month of service. Sick leave shall thereafter be credited as a permanent employee.

(E. O. 9414 Jan. 13, 1944, 3 CFR 1944 Supp.)

NOTE: These amendments are intended to bring the regulations into conformity with decisions of the Comptroller General. For this reason the Commission finds that good cause exists for making them effective upon publication in the FEDERAL REGISTER.

[SEAL] UNITED STATES CIVIL SERVICE COMMISSION,
H. B. MITCHELL,
President.

[F. R. Doc. 47-2693; Filed, Mar. 21, 1947; 8:45 a. m.]

TITLE 6—AGRICULTURAL CREDIT

Chapter III—Farmers Home Administration, Department of Agriculture

Subchapter A—Administration

PART 300—GENERAL

TRANSFER OF FUNCTIONS TO STATE DIRECTORS

Section 300.1 (11 F. R. 14221) of Title 6 of the Code of Federal Regulations is amended to add the following paragraph (d):

§ 300.1 *General functions and organization of the Farmers Home Administration.* * * *

(d) *Transfer of functions to State Directors.* The authority of regional (FSA) directors and regional (ECFL) managers for the administration of the FHA program within a state, territory, or possession (except with respect to fiscal and accounting functions of regional (ECFL) managers in connection with loan servicing, which are being transferred to Area Finance Offices, and the authority for which is vested in Area Finance Managers) is vested in each state FHA director, effective, with respect to each function of the regional (FSA) director or regional (ECFL) manager, upon the effective date of the transfer of such function to the state FHA director. The following is a list of the states, territories, and possessions under the direction of state FHA directors, the location of state offices, the functions transferred to the state FHA director, and the effective date of the vesting of the authority for each function:

(1) Alabama; Montgomery, Ala. Effective March 3, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended (50 Stat. 522, as amended; 7 U. S. C. 1000–1029); making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Con-

(Continued on p. 1917)

CONTENTS

Page

Agriculture Department
See also Commodity Exchange Authority and Farmers Home Administration.
Notices:
St. Joseph Stock Yards Co., hearing ---- 1931
Rules and regulations:
Limitations of shipments:
California and Arizona:
Lemons ---- 1922
Oranges ---- 1922
Florida; oranges, grapefruit and tangerines (2 documents) ---- 1921
Sugar beets, fair and reasonable wage rates ---- 1920

Alien Property, Office of
Notices:
Vesting orders:
Klumpp, Anton ---- 1932
Societe Nationale des Chemins de Fer Francais et al ---- 1932

Civil Aeronautics Board
Proposed rule making:
Physical examinations, periodic, for medical certificates ---- 1930
Rules and regulations:
Scheduled air carrier rules; flight engineer certificates ---- 1919
Outside United States ---- 1919

Civil Service Commission
Rules and regulations:
Leave, annual and sick; accrual ---- 1915

Civilian Production Administration
Notices:
Consent orders:
LoPresti, Carmello ---- 1933
Nussbaum, Harold ---- 1933
Milliken, Minot R., et al ---- 1932
Rules and regulations:
Suspension order; A. G. Odom ---- 1926

Commodity Exchange Authority
Rules and regulations:
Organization; availability of information and records ---- 1923

Farmers Home Administration
Rules and regulations:
Transfer of functions to State directors ---- 1915

FEDERAL REGISTER

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CONTENTS—Continued

Federal Power Commission Page
Notices:
Tennessee Gas and Transmission Co., hearing 1931

Housing Expediter, Office of
Rules and regulations:
Premium payments; softwood plywood 1923

Interior Department
See also Land Management, Bureau of.
Rules and regulations:
Delegations of authority; miscellaneous amendments 1929

International Trade, Office of
Rules and regulations:
Prohibited exportations (2 documents) 1925, 1926

Interstate Commerce Commission
Notices:
Reconsignment at Minneapolis, Minn.:
Apples 1931
Perishables 1931

Land Management, Bureau of
Rules and regulations:
New Mexico:
Grazing districts, creation and modification 1929
Land withdrawal, revocation 1929

Maritime Commission
Rules and regulations:
Prewar domestic costs; statutory sales prices 1930

National Labor Relations Board
Rules and regulations:
Description of organization; miscellaneous amendments 1925

CONTENTS—Continued

Price Administration, Office of Page
Rules and regulations:
Bases, distribution to certain former members of armed forces (Rev. Gen. RO 18, Am. 4) 1927
Food rationing for institutional users (Rev. Gen. RO 5, Am. 19) 1926
Prohibitions, general, penalties and conditions (Gen. RO 8, Am. 13) 1926
Sugar (3d Rev. RO 3, Am. 41) 1928
Direct consumption (MPR 60, Am. 9) 1927

Securities and Exchange Commission
Notices:
Hearings, etc.:
Allentown-Bethlehem Gas Co 1933
American Gas and Electric Co 1934
Detroit Edison Co 1934
St. Louis-San Francisco Railway Co 1933

CODIFICATION GUIDE

A numerical list of the parts of the Code of Federal Regulations affected by documents published in this issue. Proposed rules, as opposed to final actions, are identified as such in parentheses.

Title 3—The President Page
Chapter II—Executive Orders:
7544 [1] 1929

Title 5—Administrative Personnel
Chapter I—Civil Service Commission:
Part 54—Annual and sick leave regulations 1915

Title 6—Agricultural Credit
Chapter III—Farmers Home Administration, Department of Agriculture:
Part 300—General 1915

Title 7—Agriculture
Chapter VIII—Production and Marketing Administration (Sugar Branch):
Part 802—Sugar determinations 1920
Chapter IX—Production and Marketing Administration (Marketing Agreements and Orders):
Part 933—Oranges, grapefruit, and tangerines grown in Florida (2 documents) 1921
Part 953—Lemons grown in California and Arizona 1922
Part 966—Oranges grown in California and Arizona 1922

Title 14—Civil Aviation
Chapter I—Civil Aeronautics Board:
Part 21—Airline transport pilot rating (proposed) 1930

[1] P. L. O. 356.

CODIFICATION GUIDE—Con.

Title 14—Civil Aviation—Con. Page
Chapter I—Civil Aeronautics Board—Continued
Part 41—Certification and operation rules for scheduled air carrier operations outside the continental limits of the United States 1919
Part 43—General operation rules (proposed) 1930
Part 61—Scheduled air carrier rules 1919

Title 17—Commodity and Securities Exchanges
Chapter I—Commodity Exchange Authority (including Commodity Exchange Commission):
Part 149—Organization, functions, and procedures of the Commodity Exchange Commission 1923

Title 24—Housing Credit
Chapter VIII—Office of Housing Expediter:
Part 805—Premium payments regulations under Veterans' Emergency Housing Act of 1946 1923

Title 29—Labor
Chapter II—National Labor Relations Board:
Part 201—Description of organization 1925

Title 32—National Defense
Chapter VIII—Office of International Trade, Department of Commerce:
Part 801—General regulations (2 documents) 1925, 1926
Chapter IX—Office of Temporary Controls, Civilian Production Administration:
Part 1010—Suspension orders 1926
Chapter XI—Office of Temporary Controls, Office of Price Administration:
Part 1305—Administration (3 documents) 1926, 1927
Part 1334—Sugar 1927
Part 1407—Rationing of food and food products 1928

Title 43—Public Lands: Interior
Subtitle A—Office of the Secretary of the Interior:
Part 4—Delegations of authority 1929
Chapter I—Bureau of Land Management, Department of the Interior:
Part 162—List of orders creating and modifying grazing districts 1929
Appendix—Public land orders: 356 1929

Title 46—Shipping
Chapter II—United States Maritime Commission:
Part 299—Rules and regulations, forms, and citizenship requirements (Merchant Ship Sales Act of 1946) 1930

gress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; and, supervision of medical, dental and hospital care activities.

(3) Arkansas; Little Rock, Ark. Effective March 3, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities.

(5) Colorado; Denver, Colo. Effective March 17, 1947: Servicing of accounts transferred to the Farmers Home Administration from the Farm Credit Administration.

(6) Connecticut; Boston, Mass. Effective March 17, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities.

(7) Delaware; Baltimore, Md. Effective March 17, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities.

(8) Florida; Gainesville, Fla. Effective March 3, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for (P&S) loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; and supervision of medical, dental and hospital care activities.

(9) Georgia; Atlanta, Ga. Effective March 3, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; and supervision of medical, dental and hospital care activities.

(11) Illinois; Champaign, Ill. Effective January 20, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended. Effective January 27, 1947: Making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; and servicing and supervision of cooperative activities. Effective February 3, 1947: Supervision of medical, dental and hospital care activities.

(12) Indiana; Lafayette, Ind. Effective January 20, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended. Effective January 27, 1947: Making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; and servicing and supervision of cooperative activities. Effective February 3, 1947: Supervision of medical, dental and hospital care activities.

(13) Iowa; Des Moines, Iowa. Effective January 20, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended. Effective January 27, 1947: Making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; and servicing and supervision of cooperative activities. Effective February 3, 1947: Supervision of medical, dental and hospital care activities.

(14) Kansas; Topeka, Kans. Effective March 10, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of Water Facilities loans under the Pope-Jones Act; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities. Effective March 17, 1947: Servicing of accounts transferred to the Farmers Home Administration from the Farm Credit Administration.

(15) Kentucky; Lexington, Ky. Effective February 24, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; and servicing and supervision of cooperative activities.

(16) Louisiana; Alexandria, La. Effective March 17, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities.

(17) Maine; Bangor, Maine. Effective March 17, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; Liquidation of projects; servicing and supervision of cooperative

activities; and supervision of medical, dental and hospital care activities.

(18) Maryland, and Accomac and Northampton counties, Virginia: Baltimore, Md. Accomac and Northampton counties, Virginia, effective February 25, 1947, and Maryland, effective March 17, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities.

(19) Massachusetts; Boston, Mass. Effective March 17, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities.

(20) Michigan; East Lansing, Mich. Effective February 28, 1947: Servicing of accounts transferred to the Farmers Home Administration from the Farm Credit Administration.

(21) Minnesota, St. Paul, Minn. Effective February 28, 1947: Servicing of accounts transferred to the Farmers Home Administration from the Farm Credit Administration.

(22) Mississippi; Jackson, Miss. Effective February 10, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; Making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities. Effective March 3, 1947: Liquidation of projects.

(23) Missouri; Columbia, Mo. Effective January 20, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended. Effective January 27, 1947: Making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities. Effective February 3, 1947: Supervision of medical, dental and hospital care activities.

(25) Nebraska; Lincoln, Nebr. Effective March 10, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of Water Facilities loans under the Pope-Jones Act; servicing of accounts transferred to the Farmers Home Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities.

(27) New Hampshire; Boston, Mass. Effective March 17, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities.

(29) New Mexico; Albuquerque, N. Mex. Effective March 17, 1947: Servicing of accounts transferred to the Farmers Home Administration from the Farm Credit Administration.

(30) New York; Ithaca, N. Y. Effective March 17, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental, and hospital care activities.

(31) North Carolina; Raleigh, N. C. Effective February 24, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; and servicing and supervision of cooperative activities.

(32) North Dakota; Bismarck, N. Dak. Effective February 28, 1947: Servicing of accounts transferred to the Farmers Home Administration from the Farm Credit Administration.

(33) Ohio; Columbus, Ohio. Effective January 20, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended. Effective January 27, 1947: Making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; and servicing and supervision of cooperative activities. Effective February 3, 1947: Supervision of medical, dental and hospital care activities.

(34) Oklahoma; Oklahoma City, Okla. Effective February 27, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of Water Facilities loans under the Pope-Jones Act; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities. Effective March 17, 1947: Servicing of accounts transferred to the Farmers Home Administration from the Farm Credit Administration.

(35) Oregon; Portland, Oreg. Effective February 21, 1947: Making and servicing of Water Facilities loans under the Pope-Jones Act.

(36) Pennsylvania; Harrisburg, Pa. Effective March 17, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities.

(37) Rhode Island; Boston, Mass. Effective March 17, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the

Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities.

(38) South Carolina; Columbia, S. C. Effective March 3, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; and supervision of medical, dental and hospital care activities.

(40) Tennessee; Nashville, Tenn. Effective February 24, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; and servicing and supervision of cooperative activities.

(41) Texas; Dallas, Tex. Effective February 27, 1947; Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of Water Facilities loans under the Pope-Jones Act; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities.

(43) Vermont; Boston, Mass. Effective March 17, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; servicing and supervision of cooperative activities; and supervision of medical, dental and hospital care activities.

(44) Virginia; Richmond, Va. Effective February 24, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; and servicing and supervision of cooperative activities. The foregoing functions with respect to Accomac and Northampton counties, Virginia, were transferred on February 25, 1947, to the state FHA director for Maryland. (See subparagraph (18), Maryland.)

(45) Washington; Portland, Oreg. Effective February 21, 1947: Making and servicing of Water Facilities loans under the Pope-Jones Act.

(46) West Virginia; Morgantown, W. Va. Effective February 24, 1947: Making and servicing of FO loans under Title I of the Bankhead-Jones Farm Tenant Act, as amended; making and servicing of P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended; servicing of accounts transferred to the Farmers Home Administration from the Farm Security Administration; debt adjustment activities under the Farmers Home Administration Act and Public Law 518, 79th Congress, for P&S loans under Title II of the Bankhead-Jones Farm Tenant Act, as amended, and accounts transferred to the Farmers Home Administration from the Farm Security Administration; liquidation of projects; and servicing and supervision of cooperative activities.

(47) Wisconsin; Milwaukee, Wis. (temporary). Effective February 28, 1947; Servicing of accounts transferred to the Farmers Home Administration from the Farm Credit Administration.

(48) Wyoming; Casper, Wyo. Effective March 17, 1947; Servicing of accounts transferred to the Farmers Home Administration from the Farm Credit Administration.

(60 Stat. 1062; Order, Secretary of Agriculture, October 14, 1946, 11 F. R. 12520)

Dated: March 14, 1947.

[SEAL] S. P. LINDSEY, Jr.,
Acting Administrator,
Farmers Home Administration.

Approved: March 19, 1947.

CLINTON P. ANDERSON,
Secretary of Agriculture.

[F. R. Doc. 47-2699; Filed, Mar. 21, 1947; 8:48 a. m.]

TITLE 14—CIVIL AVIATION

Chapter I—Civil Aeronautics Board

[Civil Air Regs., Amdt. 41-5]

PART 41—CERTIFICATION AND OPERATION RULES FOR SCHEDULED AIR CARRIER OPERATIONS OUTSIDE CONTINENTAL LIMITS OF THE UNITED STATES

FLIGHT ENGINEER CERTIFICATES

Adopted by the Civil Aeronautics Board at its office in Washington, D. C., on the 14th day of March 1947.

Section 41.321 of the Civil Air Regulations requires that each flight engineer shall hold a valid flight engineer certificate issued in accordance with the provisions of Part 35, effective March 15, 1947.

The Civil Aeronautics Board finds that it will require a period of about six months after March 15, 1947, for interested flight engineers in the various parts of the world to be given an opportunity to accomplish the flight engineer examinations necessary for the issuance of a flight engineer certificate under Part 35 of this chapter, and that notice and procedures provided for in sections 4 (a) and (b) of the Administrative Procedure Act are impracticable and that this amendment should become effective immediately.

Now, therefore: Effective March 24, 1947, § 41.321 of the Civil Air Regulations is amended to read as follows:

§ 41.321 *Certificate.* Effective September 15, 1947, each flight engineer shall hold a valid flight engineer cetificate issued in accordance with the provisions of Part 35 of this chapter. (52 Stat. 984, 1007; 49 U. S. C. 425, 551)

By the Civil Aeronautics Board.

[SEAL] M. C. MULLIGAN,
Secretary.

[F. R. Doc. 47-2696; Filed, Mar. 21, 1947; 8:45 a. m.]

[Civil Air Regs., Amdt. 61-4]

PART 61—SCHEDULED AIR CARRIER RULES

FLIGHT ENGINEER CERTIFICATES

Adopted by the Civil Aeronautics Board at its office in Washington, D. C., on the 14th day of March 1947.

Part 61 of the Civil Air Regulations makes no provision requiring flight engineers. It is contemplated that such provision will be made in the proposed revision of this part.

The Civil Aeronautics Board finds that it will require a period of about six months after March 15, 1947, for interested flight engineers to be given an opportunity to accomplish the flight engineer examinations necessary for the issuance of a flight engineer certificate under Part 35, of this chapter; that amendment to Part 61 of the Civil Air Regulations should be promulgated to be consistent with § 41.321; and that notice and procedures provided for in sec-

tions 4 (a) and (b) of the Administrative Procedure Act are impracticable and that this amendment should become effective immediately.

Now, therefore: Effective March 24, 1947, Part 61 of the Civil Air Regulations is amended by adding the following sections:

§ 61.56 *Flight engineer.*

§ 61.560 *Certificate.* Effective September 15, 1947, each flight engineer shall hold a valid flight engineer certificate issued in accordance with the provisions of Part 35 of this chapter.

(52 Stat. 984, 1007; 49 U. S. C. 425, 551)

By the Civil Aeronautics Board.

[SEAL] M. C. MULLIGAN,
Secretary.

[F. R. Doc. 47-2695; Filed, Mar. 21, 1947; 8:45 a. m.]

TITLE 7—AGRICULTURE

Chapter VIII—Production and Marketing Administration (Sugar Branch)

PART 802—SUGAR DETERMINATIONS

FAIR AND REASONABLE WAGE RATES FOR 1947 CROP OF SUGAR BEETS

Pursuant to the provisions of section 301 (b) of the Sugar Act of 1937, as amended, and after investigation and due consideration of the evidence obtained at public hearings held in 1947 at Detroit on January 3, at Denver on January 6, at Salt Lake City on January 8, and at Berkeley on January 10, the following determination is hereby issued:

§ 802.14m *Fair and reasonable wage rates for the 1947 crop of sugar beets.* The requirements of section 301 (b) of the Sugar Act of 1937, as amended, shall be deemed to have been met with respect to the 1947 crop of sugar beets if all persons employed on the farm, or part of the farm covered by a separate labor agreement, in the production, cultivation, or harvesting of the 1947 crop of sugar beets shall have been paid in full for all such work at rates as agreed upon between the producer and the laborer, but in no case less than the following:

(a) *For work performed on a time basis.* (1) Blocking, thinning, hoeing, or weeding: 60 cents per hour.

(2) All harvesting work; 65 cents per hour. Permitted reduction: For workers between 14 and 16 years of age these rates may be reduced by not more than one-third. (Maximum employment per day for such workers, without deduction from Sugar Act payments, is 8 hours.)

(b) *For work performed on a piece rate basis.* Basic rates by wage districts as follows:

(1) *1947 basic rates per acre for blocking and thinning, hoeing, and weeding, by wage districts.*

Operations	I Michigan, Ohio, Indiana, Illinois, Wisconsin	II Minnesota, Iowa, eastern North Dakota	III Nebraska, Colorado, Kansas, southeastern Wyoming, east-central Utah, New Mexico, Texas	IV South Dakota, northeastern Wyoming	V South and eastern Montana, northern Wyoming, western North Dakota	VI Western Montana	VII Northern Montana	VIII Southern and eastern Idaho, northern Nevada, Utah except east-central	IX Western Idaho, Oregon	X Washington	XI California (other than Imperial Valley)	XII California (Imperial Valley)
Blocking and thinning:												
Fields planted with segmented seed [1]	$12.00	$13.00	$13.00	$14.00	$14.00	$13.00	$14.00	$12.00	$13.00	$13.00	$13.00	$12.00
Fields planted with natural whole seed	14.00	15.00	15.00	16.00	16.00	15.00	16.00	14.00	15.00	15.00	15.00	14.00
First hoeing	4.00	4.00	4.50	4.50	5.00	5.00	4.50	4.00	5.00	5.00	4.00	4.00
Each subsequent hoeing or weeding	2.75	3.00	3.00	3.00	3.50	4.00	3.50	3.00	4.00	4.00	3.00	3.00

Combined operations. Where a written agreement provides for a combined rate for all work of blocking and thinning, hoeing and weeding, regardless of the number of hoeings and weedings required, the applicable basic rate shall be the sum of the above applicable blocking-thinning, first hoeing and subsequent hoeing rates.

Permitted reductions:

Machine blocking. The above thinning rates may be reduced not in excess of $2.00 per acre for fields that are machine blocked prior to thinning, provided the thinning can be done shortly after the cross blocking is performed and while the plants are of normal size for thinning.

Wide row planting. The above thinning and hoeing rates may be reduced but not in excess of percentages in accordance with row spacings as follows: 28 inches or more but less than 31 inches, 20 percent; 31 inches or more but less than 34 inches, 25 percent; 34 inches or more, 30 percent.

Cross cultivation. In District II the specified hoeing rate may be reduced not in excess of $1.00 per acre for the first hoeing and 50 cents per acre for each subsequent hoeing or weeding, if preceded by cross cultivation.

[1] Or seed containing 75% or more of single germs.

(2) *1947 basic rates for pulling, topping, and loading, by wage districts.*

Average tons per acre [1] (To determine applicable rate, round to nearest ton except to nearest one-tenth ton in district I)	Basic rates per ton													
	I	II	III	IV	V	VI	VII		VIII	IX	X		XI	XII
	Pull and top	Pull and top	Pull and top	Pull and top	Pull and top	Pull and top	Pull and top	Pull, top, and load	Pull, top, and load	Pull, top, and load	Pull, top, and windrow	Pull, top, and load	Pull, top, and load	Pull, top, and load
4	$2.30													
5	2.09													
6	1.94	$1.75	$1.60	$1.60	$1.60	$1.90	$2.03	$2.44	$2.42	$2.42	$2.15	$2.60	$3.13	$3.04
7	1.85	1.75	1.60	1.60	1.60	1.81	1.94	2.33	2.31	2.31	2.05	2.48	2.83	2.74
8	1.78	1.75	1.60	1.60	1.60	1.74	1.86	2.23	2.21	2.21	1.97	2.38	2.62	2.53
9	1.75	1.75	1.60	1.60	1.60	1.70	1.77	2.12	2.10	2.10	1.87	2.26	2.47	2.38
10	1.71	1.75	1.60	1.60	1.60	1.67	1.70	2.04	2.02	2.02	1.79	2.17	2.35	2.24
11	1.67	1.75	1.60	1.60	1.60	1.62	1.64	1.97	1.96	1.96	1.74	2.11	2.23	2.12
12	1.65	1.75	1.60	1.60	1.60	1.60	1.60	1.93	1.91	1.91	1.69	2.05	2.14	2.04
13	1.62	1.75	1.60	1.60	1.60	1.60	1.60	1.93	1.86	1.86	1.65	2.00	2.06	1.96
14	1.60	1.75	1.60	1.60	1.60	1.60	1.60	1.93	1.81	1.81	1.61	1.95	1.99	1.89
15	1.57	1.75	1.60	1.60	1.60	1.60	1.60	1.93	1.78	1.78	1.58	1.91	1.92	1.82
16	1.54	1.75	1.60	1.60	1.60	1.60	1.60	1.93	1.76	1.76	1.56	1.89	1.85	1.75
17	1.54	1.75	1.60	1.60	1.60	1.60	1.60	1.93	1.73	1.73	1.54	1.86	1.81	1.70
18	1.54	1.75	1.60	1.60	1.60	1.60	1.60	1.93	1.72	1.72	1.53	1.85	1.77	1.66
19	1.54	1.75	1.60	1.60	1.60	1.60	1.60	1.93	1.71	1.71	1.52	1.84	1.72	1.62
20 and over	1.54	1.75	1.60	1.60	1.60	1.60	1.60	1.93	1.70	1.70	1.51	1.83	1.71	1.61
	Minimum wage per acre													
	$8.00	$9.50	$8.50	$8.50	$8.50	$10.00	$10.50	$11.50	$11.50	$11.50	$10.00	$12.00	$15.50	$15.00

Permitted divisions of specified rates:

Pulling and topping. In cases in which the operations of pulling and topping are performed by different workers, the above applicable pulling and topping rate shall be divided 35 percent for pulling and 65 percent for topping.

Topping and loading. In Districts VIII and IX in cases where loading is not required of the person who does the pulling and topping, the rate for pulling and topping shall be 70 percent of the applicable rate for pulling, topping, and loading; except that if the beets are to be loaded mechanically and the topper is not required to pull beets to provide a place for a windrow, the rate for pulling and topping shall be as agreed upon but no less than 60 percent of the applicable rate for pulling, topping, and loading.

[1] For the farm, or part of the farm covered by a separate labor agreement.

(c) *General provisions*—(1) *Reduction for other labor saving methods.* In instances in which the use of mechanical equipment for planting, cultivating or harvesting (other than cases for which rates are specified or reductions otherwise provided) reduces the amount of labor required as compared with the amount required without the use of such mechanical equipment, the piece rate for the operation involved may be reduced below the rate prescribed herein, provided such reduced rate is determined by the State Committee for each such case to be not less than the equivalent of the specified rate for the amount of work involved.

(2) *Work not covered by specific rates.* For any work in the production, cultivation or harvesting of sugar beets for which a rate is not specified herein, such as fertilizing, plowing, preparing seedbed, or irrigating, the rate shall be as agreed upon between the producer and the laborer.

(3) *Perquisites.* In addition to the foregoing wage rate, the producer shall furnish to the laborer, without charge, the perquisites customarily furnished by him, such as a house, garden plot, and similar incidentals.

(4) *Subterfuge.* The producer shall not reduce the wage rates below those determined herein through any subterfuge or device whatsoever. (Sec. 301, 50 Stat. 909; 7 U. S. C. 1131)

Issued this 18th day of March 1947.

[SEAL] CLINTON P. ANDERSON,
Secretary of Agriculture.

[F. R. Doc. 47-2692; Filed, Mar. 21, 1947; 8:47 a. m.]

Chapter IX—Production and Marketing Administration (Marketing Agreements and Orders)

[Orange Reg. 115]

PART 933—ORANGES, GRAPEFRUIT, AND TANGERINES GROWN IN FLORIDA

LIMITATION OF SHIPMENTS

§ 933.340 *Orange Regulation 115*—(a) *Findings.* (1) Pursuant to the amended marketing agreement and the order, as amended (7 CFR, Cum. Supp., 933.1 et seq.; 11 F. R. 9471), regulating the handling of oranges, grapefruit, and tangerines grown in the State of Florida, issued under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended, and upon the basis of the recommendations of the committees established under the aforesaid amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments of oranges, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that compliance with the notice, public rule making procedure, and effective date requirements of the Administrative Procedure Act (Pub. Law 404, 79th Cong.; 60 Stat. 237) is impracticable and contrary to the public interest in that the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the Agricultural Marketing Agreement Act of 1937, as amended, is insufficient for such compliance.

(b) *Order.* During each of the periods specified in subparagraphs (1), (2), and (3) of this paragraph, no handler shall ship any oranges, including Temple oranges, except as permitted by the respective subparagraph.

(1) During the period beginning at 12:01 a. m., e. s. t., March 24, 1947, and ending at 12:01 a. m., e. s. t., March 31, 1947, no handler shall ship:

(i) Any oranges, except Temple oranges grown in the State of Florida, which grade U. S. No. 2, as such grade is defined in the United States standards for citrus fruits, as amended (11 F. R. 13239; 12 F. R. 1), if more than one-half of the surface in the aggregate is affected with discoloration;

(ii) Any oranges, except Temple oranges, grown in the State of Florida, which grade U. S. Combination Russet, U. S. No. 2 Russet, U. S. No. 3, or lower than U. S. No. 3 grade, as such grades are defined in the aforesaid amended United States standards;

(iii) Any oranges, except Temple oranges, grown in the State of Florida, which are of a size smaller than a size that will pack 288 oranges, packed in accordance with the requirements of a standard pack (as such pack is defined in the aforesaid amended United States standards), in a standard box (as such box is defined in the standards for containers for citrus fruit established by the Florida Citrus Commission pursuant to section 3 of Chapter 20449, Laws of Florida, Acts of 1941 (Florida Laws Annotated § 595.09)); or

(iv) Any oranges, except Temple oranges, grown in the State of Florida, which are of a size larger than a size that will pack 126 oranges, packed in accordance with the requirements of a standard pack (as such pack is defined in the aforesaid amended United States standards), in a standard box (as such box is defined in the aforesaid standards for containers for citrus fruit).

(2) During the period beginning at 12:01 a. m., e. s. t., March 31, 1947, and ending at 12:01 a. m., e. s. t., April 7, 1947, no handler shall ship:

(i) Any oranges, except Temple oranges, grown in the State of Florida, which grade U. S. Combination Russet, U. S. No. 2 Russet, U. S. No. 3, or lower than U. S. No. 3 grade, as such grades are defined in the aforesaid amended United States standards;

(ii) Any oranges, except Temple oranges, grown in the State of Florida, which are of a size smaller than a size that will pack 288 oranges, packed in accordance with the requirements of a standard pack (as such pack is defined in the aforesaid amended United States standards), in a standard box (as such box is defined in the standards for containers for citrus fruit established by the Florida Citrus Commission pursuant to section 3 of Chapter 20449, Laws of Florida, Acts of 1941 (Florida Laws Annotated § 595.09)); or

(iii) Any oranges, except Temple oranges, grown in the State of Florida, which are of a size larger than a size that will pack 126 oranges, packed in accordance with the requirements of a standard pack (as such pack is defined in the aforesaid amended United States standards), in a standard box (as such box is defined in the aforesaid standards for containers for citrus fruit).

(3) During the period beginning at 12:01 a. m., e. s. t., March 24, 1947, and ending at 12:01 a. m., e. s. t., July 31, 1947, no handler shall ship any Temple oranges, grown in the State of Florida, which grade U. S. No. 3 or lower than U. S. No. 3, as such grades are defined in the aforesaid amended United States standards.

(4) As used in this section, "handler" and "ship" shall have the same meaning as is given to each such term in said amended marketing agreement and order. (48 Stat. 31, 670, 675, 49 Stat. 750, 50 Stat. 246; 7 U. S. C. 601 et seq.)

Done at Washington, D. C., this 20th day of March 1947.

[SEAL] C. F. KUNKEL,
Acting Director, Fruit and Vegetable Branch, Production and Marketing Administration.

[F. R. Doc. 47-2760; Filed, Mar. 21, 1947; 8:48 a. m.]

[Grapefruit Reg. 86]

PART 933—ORANGES, GRAPEFRUIT, AND TANGERINES GROWN IN FLORIDA

LIMITATION OF SHIPMENTS

§ 933.341 *Grapefruit Regulation 86*—(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and the order, as amended (7 CFR, Cum. Supp., 933.1 et seq.; 11 F. R. 9471), regulating the handling of oranges, grapefruit, and tangerines grown in the State of Florida, issued under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended, and upon the basis of the recommendations of the committees established under the aforesaid amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments of grapefruit, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that compliance with the notice, public rule making procedure, and effective date requirements of the Administrative Procedure Act (Pub. Law 404, 79th Cong.; 60 Stat. 237) is impracticable and contrary to the public interest in that the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the Agricultural Marketing Agreement Act of 1937, as amended, is insufficient for such compliance.

(b) *Order.* (1) Grapefruit Regulation 85 (12 F. R. 1771) is hereby termi-

nated as of the effective time of this regulation.

(2) During the period beginning at 12:01 a. m., e. s. t., March 24, 1947, and ending at 12:01 a. m., e. s. t., July 31, 1947, no handler shall ship:

(i) Any grapefruit of any variety, grown in the State of Florida, which grade U. S. No. 3, or lower than U. S. No. 3 grade (as such grades are defined in the United States standards for citrus fruits, as amended (11 F. R. 13239; 12 F. R. 1));

(ii) Any seeded grapefruit, other than pink grapefruit, grown in the State of Florida, which are of a size smaller than a size that will pack 80 grapefruit, packed in accordance with the requirements of a standard pack (as such pack is defined in the aforesaid amended United States standards), in a standard box (as such box is defined in the standards for containers for citrus fruit established by the Florida Citrus Commission pursuant to section 3 of Chapter 20449, Laws of Florida, Acts of 1941 (Florida Laws Annotated § 595.09));

(iii) Any seedless grapefruit, other than pink grapefruit, grown in the State of Florida, which are of a size smaller than a size that will pack 126 grapefruit, packed in accordance with the requirements of a standard pack (as such pack is defined in the aforesaid amended United States standards), in a standard box (as such box is defined in the aforesaid standards for containers for citrus fruit); or

(iv) Any pink grapefruit, grown in the State of Florida, which are of a size smaller than a size that will pack 126 grapefruit, packed in accordance with the requirements of a standard pack (as such pack is defined in the aforesaid amended United States standards), in a standard box (as such box is defined in the aforesaid standards for containers for citrus fruit).

(3) As used in this section, "variety," "handler," and "ship" shall have the same meaning as is given to each such term in said amended marketing agreement and order. (48 Stat. 31, 670, 675, 49 Stat. 750, 50 Stat. 246; 7 U. S. C. 601 et seq.)

Done at Washington, D. C., this 20th day of March 1947.

[SEAL] C. F. KUNKEL,
Acting Director, Fruit and Vegetable Branch, Production and Marketing Administration.

[F. R. Doc. 47-2759; Filed, Mar. 21, 1947; 8:48 a. m.]

[Lemon Reg. 214]

PART 953—LEMONS GROWN IN CALIFORNIA AND ARIZONA

LIMITATION OF SHIPMENTS

§ 953.321 *Lemon Regulation 214*—(a) *Findings.* (1) Pursuant to the marketing agreement and the order (7 CFR, Cum. Supp., 953.1 et seq.), regulating the handling of lemons grown in the State of California or in the State of Arizona, issued under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended, and upon the basis of the recommendation and information submitted by the Lemon Administrative Committee, established under the said marketing agreement and order, and upon other available information, it is hereby found that the limitation of the quantity of such lemons which may be handled, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that compliance with the notice, public rule making procedure, and effective date requirements of the Administrative Procedure Act (Pub. Law 404, 79th Cong., 2d Sess.; 60 Stat. 237) is impracticable and contrary to the public interest in that the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the Agricultural Marketing Agreement Act of 1937, as amended, is insufficient for such compliance.

(b) *Order.* (1) The quantity of lemons grown in the State of California or in the State of Arizona which may be handled during the period beginning at 12:01 a. m., p. s. t., March 23, 1947, and ending at 12:01 a. m., p. s. t. March 30, 1947, is hereby fixed at 315 carloads, or an equivalent quantity.

(2) The prorate base of each handler who has made application therefor, as provided in the said marketing agreement and order, is hereby fixed in accordance with the prorate base schedule which is attached to Lemon Regulation 213 (12 F. R. 1773) and made a part hereof by this reference. The Lemon Administrative Committee, in accordance with the provisions of the said marketing agreement and order, shall calculate the quantity of lemons which may be handled by each such handler during the period specified in subparagraph (1) of this paragraph.

(3) As used in this section, "handled," "handler," "carloads," and "prorate base" shall have the same meaning as is given to each such term in the said marketing agreement and order. (48 Stat. 31, 670, 675, 49 Stat. 750, 50 Stat. 246; 7 U. S. C. 601 et seq.)

Done at Washington, D. C., this 20th day of March 1947.

[SEAL] C. F. KUNKEL,
Acting Director, Fruit and Vegetable Branch, Production and Marketing Administration.

[F. R. Doc. 47-2758; Filed, Mar. 21, 1947; 8:48 a. m.]

[Orange Reg. 170]

PART 966—ORANGES GROWN IN CALIFORNIA AND ARIZONA

LIMITATION OF SHIPMENTS

§ 966.316 *Orange Regulation 170*—(a) *Findings.* (1) Pursuant to the provisions of the order (7 CFR, Cum. Supp., 966.1 et seq.) regulating the handling of oranges grown in the State of California or in the State of Arizona, issued under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended, and upon the basis of the recommendation and information submitted by the Orange Administrative Committee, established under the said order, and upon other available information, it is hereby found that the limitation of the quantity of such oranges which may be handled, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that compliance with the notice, public rule making procedure, and effective date requirements of the Administrative Procedure Act (Pub. Law 404, 79th Cong., 2d Sess.; 60 Stat. 237) is impracticable and contrary to the public interest in that the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the Agricultural Marketing Agreement Act of 1937, as amended, is insufficient for such compliance.

(b) *Order.* (1) The quantity of oranges grown in the State of California or in the State of Arizona which may be handled during the period beginning at 12:01 a. m., p. s. t., March 23, 1947, and ending at 12:01 a. m., p. s. t., March 30, 1947, is hereby fixed as follows:

(i) *Valencia oranges.* (*a*) Prorate Districts Nos. 1 and 2, no movement; and (*b*) Prorate District No. 3, unlimited movement.

(ii) *Oranges other than Valencia oranges.* (*a*) Prorate District No. 1, unlimited movement; (*b*) Prorate District No. 2, 1300 carloads; and (*c*) Prorate District No. 3, unlimited movement.

(2) The prorate base of each handler who has made application therefor, as provided in the said order, is hereby fixed in accordance with the prorate base schedule which is attached hereto and made a part hereof by this reference. The Orange Administrative Committee, in accordance with the provisions of the said order, shall calculate the quantity of oranges which may be handled by each such handler during the period specified in subparagraph (1) of this paragraph.

(3) As used in this section, "handled," "handler," "carloads," and "prorate base" shall have the same meaning as is given to each such term in the said order; and "Prorate District No. 1," "Prorate District No. 2," and "Prorate District No. 3" shall have the same meaning as is given to each such term in § 966.107 of the rules and regulations (11 F. R. 10258) issued pursuant to said order. (48 Stat. 31, 670, 675, 49 Stat. 750, 50 Stat. 246; 7 U. S. C. 601 et seq.)

Done at Washington, D. C., this 20th day of March 1947.

[SEAL] C. F. KUNKEL,
Acting Director, Fruit and Vegetable Branch, Production and Marketing Administration.

PRORATE BASE SCHEDULE

[12:01 a. m. March 23, 1947, to 12:01 a. m. March 30, 1947]

ALL ORANGES OTHER THAN VALENCIA ORANGES

Prorate District No. 2

Handler	Prorate base (percent)
Total	100.0000
A. F. G. Alta Loma	.3583
A. F. G. Fullerton	.0516
A. F. G. Orange	.0566
A. F. G. Redlands	.3610
A. F. G. Riverside	.5734
Corona Plantation Co	1.1728
Hazeltine Packing Co	.0510
Signal Fruit Association	.7877
Azusa Citrus Association	1.0328
Azusa Orange Co., Inc	.1582
Damerel-Allison Co	1.2429
Glendora Mutual Orange Association	.5365
Irwindale Citrus Association	.3645
Puente Mutual Citrus Association	.0498
Valencia Heights Orchards Association	.2349
Glendora Citrus Association	.6679
Glendora Heights Orange and Lemon Growers Association	.2164
Gold Buckle Association	3.5183
La Verne Orange Association, The	3.5435
Anaheim Citrus Fruit Association	.0000
Anaheim Valencia Orange Association	.0000
Eadington Fruit Co., Inc	.0000
Fullerton Mutual Orange Association	.0000
La Habra Citrus Association	.0000
Orange Co. Valencia Association	.0242
Orangethorpe Citrus Association	.0242
Placentia Coop. Orange Association	.0000
Yorba Linda Citrus Association, The	.0140
Alta Loma Heights Citrus Association	.4020
Citrus Fruit Growers	.7584
Cucamonga Citrus Association	.6456
Etiwanda Citrus Fruit Association	.2297
Mountain View Fruit Association	.1653
Old Baldy Citrus Association	.4860
Rialto Heights Orange Growers	.4077
Upland Citrus Association	2.3250
Upland Heights Orange Association	1.0703
Consolidated Orange Growers	.0000
Garden Grove Citrus Association	.0000
Goldenwest Citrus Association, The	.0000
Olive Heights Citrus Association	.0389
Santa Ana-Tustin Mutual Citrus Association	.0000
Santiago Orange Growers Association	.0000
Tustin Hills Citrus Association	.0000
Villa Park Orchards Association, Inc., The	.0000
Bradford Brothers, Inc	.0000
Placentia Mutual Orange Association	.0000
Placentia Orange Growers Association	.0000
Call Ranch	.6723
Corona Citrus Association	.8008
Jameson Co	.3814
Orange Heights Orange Association	.9172
Break & Son, Allen	.3165
Bryn Mawr Fruit Growers Association	1.1111
Grafton Orange Growers Association	1.4180
E. Highlands Citrus Association	.4321
Fontana Citrus Association	.4546
Highland Fruit Growers Association	.6971
Krinard Packing Co	1.5205
Mission Citrus Association	.8155
Redlands Coop. Fruit Association	1.7993
Redlands Heights Groves	.9582
Redlands Orange Growers Association	1.2162
Redlands Orangedale Association	.9983
Redlands Select Groves	.6223
Rialto Citrus Association	.5808
Rialto Orange Co	.3801
Southern Citrus Association	1.3072
United Citrus Growers	.6674
Zilen Citrus Co	.9256
Arlington Heights Fruit Co	.4972
Brown Estate, L. V. W	1.8244
Gavilan Citrus Association	1.7379
Hemet Mutual Groves	.3477
Highgrove Fruit Association	.7102
McDermont Fruit Company	1.7894
Mentone Heights Association	1.0184
Monte Vista Citrus Association	1.1774
National Orange Co	.8788
Riverside Heights Orange Growers Association	1.3266
Sierra Vista Packing Association	.8010
Victoria Ave. Citrus Association	2.7657
Claremont Citrus Association	1.0207
College Heights Orange and Lemon Association	1.0756
El Camino Citrus Association	.5437
Indian Hill Citrus Association	1.1846
Pomona Fruit Growers Association	2.0933
Walnut Fruit Growers Association	.4464
West Ontario Citrus Association	1.6048
El Cajon Valley Citrus Association	.3861
Escondido Orange Association	.5711
San Dimas Orange Growers Association	1.0522
Covina Citrus Association	1.5507
Covina Orange Growers Association	.5155
Duarte-Monrovia Fruit Exchange	.3587
Ball & Tweedy Association	.0137
Canoga Citrus Association	.0000
N. Whittier Heights Citrus Association	.1463
San Fernando Fruit Growers Association	.3143
San Fernando Heights Orange Association	.3721
Sierra Madre Lamanda Citrus Association	.2084
Camarillo Citrus Association	.0112
Fillmore Citrus Association	1.3468
Ojai Orange Association	1.1739
Piru Citrus Association	1.4604
Santa Paula Orange Association	.1904
Tapo Citrus Association	.0112
East Whittier Citrus Association	.0172
Whittier Citrus Association	.0000
Whittier Select Citrus Association	.0000
Anaheim Coop. Orange Association	.0000
Bryn Mawr Mutual Orange Association	.4850
Chula Vista Mutual Lemon Association	.0000
Escondido Coop. Citrus Association	.0000
Euclid Avenue Orange Association	2.1980
Foothill Citrus Union, Inc	.1621
Fullerton Coop. Orange Association	.0000
Garden Grove Orange Coop	.0000
Glendora Coop. Citrus Association	.0924
Golden Orange Groves, Inc	.4216
Highland Mutual Groves, Inc	.4311
Index Mutual Association	.0000
La Verne Coop. Citrus Association	3.2659
Olive Hillside Groves, Inc	.0000
Orange Coop. Citrus Association	.0463
Redlands Foothill Groves	2.2125
Redlands Mutual Orange Association	1.0770
Riverside Citrus Association	.3523
Ventura County Orange and Lemon Association	.3228
Whittier Mutual Orange and Lemon Association	.0000
Babijuice Corp. of California	.3113
Banks Fruit Co	0.2673
California Fruit Distributors	.1279
Cherokee Citrus Co., Inc	1.0555
Chess Co., Meyer W	.4066
Evans Brothers Packing Co	.4217
Gold Banner Association	1.9679
Granada Hills Packing Co	.0234
Granada Packing House	.4119
Hill, Fred A	.7331
Inland Fruit Dealers, Inc	.2096
Orange Belt Fruit Distributors	2.4306
Panno Fruit Co., Carlo	.0983
Paramount Citrus Association	.1953
Riverside Growers, Inc	.2401
San Antonio Orchards Association	1.3238
Snyder & Sons Co., W. A	1.0068
Torn Ranch	.0497
Verity & Sons Co., R. H	.1073
Wall, E. T	1.4492
Western Fruit Growers, Inc., Redlands	2.9557
Yorba Orange Growers Association	.0331

[F. R. Doc. 47-2757; Filed, Mar. 21, 1947; 8:48 a. m.]

TITLE 17—COMMODITY AND SECURITIES EXCHANGES

Chapter I—Commodity Exchange Authority (Including Commodity Exchange Commission), Department of Agriculture

PART 149—ORGANIZATION, FUNCTIONS, AND PROCEDURES OF COMMODITY EXCHANGE COMMISSION

AVAILABILITY OF INFORMATION AND RECORDS

Section 149.3 *Availability of information and records*, Subpart A, Part 149, Chapter I, Title 17, Code of Federal Regulations (11 F. R. 177A-390), is amended:

By striking therefrom "Administrator of the Commodity Exchange Act, Production and Marketing Administration," and inserting in lieu thereof "Administrator of the Commodity Exchange Authority,".

(Sec. 12, Pub. Law 404, 79th Cong., 60 Stat. 244)

Issued this 19th day of March 1947.

[SEAL] CLINTON P. ANDERSON,
Secretary of Agriculture,
Chairman.

[F. R. Doc. 47-2698; Filed, Mar. 21, 1947; 8:48 a. m.]

TITLE 24—HOUSING CREDIT

Chapter VIII—Office of Housing Expediter

[Premium Payments Reg. 2, as Amended Feb. 12, 1947, Amdt. 1]

PART 805—PREMIUM PAYMENTS REGULATIONS UNDER VETERANS' EMERGENCY HOUSING ACT OF 1946

SOFTWOOD PLYWOOD

Section 805.2 (Housing Expediter Premium Payments Regulation No. 2) is amended in the following respects:

1. Paragraph (e) (4) is deleted.

2. Paragraphs (k) and (l) are renumbered (q) and (r) respectively, and new paragraphs (k) to (p) inclusive are added to read as follows:

LIQUIDATION SETTLEMENT

(k) *Purpose and general explanation.* Paragraphs (m) through (p) provide the rates, terms and conditions for liquidation premiums to any plywood company that had a net increase in its inventory of peeler logs between June 1 and November 30, 1946, and for recovery or set-off in the case of any plywood company that had a net decrease in its inventory of peeler logs between those dates. Paragraph (l) below provides the method for calculating the net increase or net decrease in inventory of peeler logs.

(l) *Method of calculating net change in inventory of peeler logs.* (1) The method herein provided for determining whether there has been a net increase or a net decrease in inventory of peeler logs between June 1 and November 30, 1946, takes into account that, with respect to peeler log purchases between September 1 and November 30, 1946, only "Douglas fir peeler logs" would be eligible for the premium specified in paragraph (e). Thus it requires that each plywood company find the net change in inventory of "Douglas fir peeler logs" between June 1 and November 30, 1946, and separately the net change in inventory of "other peeler logs" between June 1 and August 31, 1946. The method further recognizes that, of the "other peeler logs" purchased between June 1 and August 31, 1946, some portion of those which are included in the August 31 inventory may have been consumed during September, October and November, 1946, and claims for the premium specified in paragraph (e) filed with respect thereto. To avoid paying double premiums on these "other peeler logs" (the paragraph (e) premium and the liquidation premium), the method requires that they be subtracted from the inventory change in "other peeler logs," in arriving at the final figure on which liquidation premiums are payable.

As used in this paragraph (l), "Douglas fir peeler logs" means Douglas fir, No. 1, 2 and 3 peeler. "Other peeler logs" mean Western hemlock and Western white fir, suitable for peeling; Sitka spruce, select; and Noble fir, aircraft grade and suitable for peeling.

(2) The net change in peeler log inventory shall be computed as follows:

Step 1. Find the difference between the inventory of Douglas fir peeler logs on June 1, 1946, and the inventory of such peeler logs on November 30, 1946. Where the June 1 inventory is less than the November 30 inventory, the result obtained is the "net increase" in inventory of Douglas fir peeler logs. Where the June 1 inventory is greater than the November 30 inventory, the result obtained is the "net decrease" in inventory of Douglas fir peeler logs.

Step 2. Find the "net increase" or "net decrease" in inventory of other peeler logs. To do this:

(*a*) Find the quantity of other peeler logs which were in inventory on June 1, 1946, and to this figure add the quantity of other peeler logs which were reported (in Block 6, Item C of form OHE 2-2) as consumed in the manufacture of plywood during September, October and November, 1946.

(*b*) Find the quantity of other peeler logs which were in inventory on August 31, 1946.

(*c*) Find the difference between the amount found in (*a*) and the amount found in (*b*). Where (*a*) is less than (*b*), the result obtained is the "net increase" in inventory of other peeler logs. Where (*a*) is greater than (*b*), the result is the "net decrease" in inventory of other peeler logs.

Step 3. If the amounts found in Steps 1 and 2 (*c*) are both "net increases," add them, and the result is the net increase in inventory of peeler logs on which liquidation premiums are payable at the rate found under paragraph (m) below. If the amounts found in Steps 1 and 2 (*c*) are both "net decreases," add them, and the result is the net decrease in inventory of peeler logs on which recovery or set-off will be made under paragraph (p) below. If the amount found in either Step 1 or Step 2 (*c*) is a "net increase," while the amount found in the other of these two steps is a "net decrease," find the difference between such "net increase" and "net decrease." Where such "net increase" is greater than the "net decrease," the result is the net increase in inventory of peeler logs on which liquidation premiums are payable. Where such "net decrease" is greater than the "net increase," the result is the net decrease in inventory of peeler logs on which recovery or set-off will be made.

Example: X's peeler log inventory situation is as follows (all figures are thousands feet logscale):

(1) Net change in inventory of Douglas fir peeler logs:

800, November 30, 1946
— 600, June 1, 1946
200

Since the November 30 figure is greater than the June 1 figure, 200 represents the "net increase" in inventory of Douglas fir peeler logs.

(2) Net change in inventory of other peeler logs:

300, June 1, 1946 inventory of other peeler logs.
+ 50, Other peeler logs in September, October, and November, 1946, claims for premium
350
—200, August 31, 1946 inventory of other peeler logs
150

Since the June 1 figure plus the amount of other peeler logs consumed in September, October, and November is greater than the August 31 figure, 150 represents the "net decrease" in inventory of other peeler logs.

(3) Net change in inventory of peeler logs:

200, "Net increase" in inventory of Douglas fir peeler logs
— 150, "Net decrease" in inventory of other peeler logs
50

Since the "net increase" in Douglas fir peeler logs is greater than the "net decrease" in other peeler logs, 50 represents the net increase in inventory of peeler logs on which liquidation premiums are payable.

(3) Each plywood company for which a quota has been approved under paragraph (c) shall report the net change in its inventory of peeler logs between June 1 and November 30, 1946, on Section I of form OHE 2-5. This form shall be filed with the Office of the Housing Expediter, Washington 25, D. C., by April 30, 1947.

(m) *Rate of liquidation premium.* If, under paragraph (l) above, a plywood company had a net increase in peeler log inventory, the plywood company shall be entitled to receive liquidation premiums at a rate computed as follows:

(1) *Consumption period.* The "consumption period" shall be the period, beginning with December 1, 1946, during which the quantity of peeler logs (in thousand feet logscale) consumed in plywood shipped equals the net increase in peeler log inventory. If this period consists of or ends with a fraction of a month, the company shall include the entire month: *Provided, however,* That if the company's records enable it to compute plywood shipments and production costs for a fraction of a month, the consumption period may, at the option of the company, consist of or end with such fraction of a month.

Example: If the amount of peeler logs consumed in plywood shipped between December 1, 1946 and January 10, 1947, equals the net increase in peeler log inventory, the consumption period is December 1, 1946 through January 31, 1947. However, if the company has cost and shipment records for a fractional month, it may elect to use the period December 1, 1946 through January 10, 1947, as its consumption period.

If the amount of peeler logs consumed in plywood shipped between December 1, 1946 and April 25, 1947, equals the net increase in peeler log inventory, the consumption period is December 1, 1946 through April 30, 1947. However, if the company has cost and shipment records for a fractional month, it may elect to use the period December 1, 1946 through April 25, 1947, as its consumption period.

(2) *Gross increases in sales income.* Find the total sales income from the plywood shipped during the consumption period and subtract from this amount the sales income which would have been realized from the same shipments if they had been made at the OPA ceiling prices in effect on November 9, 1946. The result is the "gross increase in sales income."

(3) *Increase in allowable costs.* Find the production costs of the plywood shipped during the consumption period as if it had been produced in that period, and subtract from this amount the production costs of the same plywood as if it had been produced during October, 1946 (in finding these production costs, exclude the cost of peeler logs delivered at the plant and all general, administrative and selling costs). The result is the "increase in allowable costs."

(4) *Net increase in sales income.* Subtract the increase in allowable costs from the gross increase in sales income. The result is the "net increase in sales income."

(5) *Rate of liquidation premium.* Divide the net increase in sales income by the quantity (in thousand feet logscale) of peeler logs consumed in the plywood which was shipped during the consumption period. If the result is $7.50 per thousand feet logscale, or more, the rate of liquidation payment is zero. If it is less, the rate of liquidation premium per thousand feet logscale is the difference between that amount and $7.50.

(n) *Computation of amount payable.* (1) For each plywood company, the total amount payable as a liquidation premium is the amount obtained by multiplying its net increase in peeler log inventory by the rate found under paragraph (m).

(2) If a plywood company's consumption period extends beyond March 31, 1947, the company, if it desires to claim any liquidation premium, shall file a preliminary claim for the partial period December 1, 1946 through March 31, 1947. The company will then be eligible to receive an advance payment equal to the amount obtained by multiplying the quantity of peeler logs consumed in plywood shipped during such partial period by the rate found for such partial period under paragraph (m). However, at the end of the consumption period, the company shall recompute the rate of liquidation premium based upon the entire period, and file a final claim for the entire period, at which time a final settlement shall be made, taking into account the advance previously made. If a company whose consumption period extends beyond March 31, 1947, fails to file a preliminary claim within the time specified in paragraph (o) of this section, it shall not be eligible to claim or receive any liquidation premiums under this section.

(o) *Claims for liquidation premiums.* (1) Claims for liquidation premiums shall be filed with the Office of the Housing Expediter, Washington 25, D. C., on section II of form OHE 2–5.

(2) Final claims for a period which ends on or before March 31, 1947, and preliminary claims shall be filed by April 30, 1947. Final claims for a period which ends after March 31, 1947, shall be filed by the end of the month following the month in which the period ends: *Provided, however,* That no such claims shall be filed after September 30, 1947.

(3) With respect to all claims for liquidation premiums that have not been verified and audited by the Expediter, RFC may require that bond be furnished in form and amount satisfactory to it before making payment thereon.

(p) *Recovery or set-off.* If, under paragraph (l) above, a plywood company has a net decrease in peeler log inventory, the amount of the decrease shall be recovered or set-off at the rate of $7.50 per thousand feet logscale.

3. Paragraph (q), formerly (k), is amended to read as follows:

(q) *Termination.* This section shall terminate on March 20, 1947. Such termination shall not preclude the filing of (1) claims accrued on or before November 30, 1946, and (2) claims for liquidation premiums, which shall be dealt with in accordance with the provisions of this section in the same manner as if it had not been terminated.

Issued and effective this 19th day of March 1947.

FRANK R. CREEDON,
Housing Expediter.

[F. R. Doc. 47–2756; Filed, Mar. 20, 1947; 2:49 p. m.]

TITLE 29—LABOR

Chapter II—National Labor Relations Board

PART 201—DESCRIPTION OF ORGANIZATION

MISCELLANEOUS AMENDMENTS

On September 11, 1946, pursuant to the provisions of section 3 (a) (1) of the Administrative Procedure Act (Public Law 404, 79th Congress, 2d Sess.), the National Labor Relations Board separately stated and published in the FEDERAL REGISTER descriptions of its central and field organization, including delegations by the agency of final authority and the established places at which, and methods whereby, the public may secure information or make submittals or requests. The Board subsequently abolished its Eleventh Regional Office (Indianapolis, Indiana) and enlarged the areas serviced by the Ninth (Cincinnati, Ohio) and Thirteenth (Chicago, Illinois) Regional Offices so as to include the areas previously serviced by the Eleventh Region; at the same time, it established a Sub-Regional Office of the Ninth Region at Indianapolis, Indiana. The Board also desires to correct an inadvertent error appearing in its previously published Descriptions of Organization with respect to the description of the area serviced by the Eighteenth Region. Accordingly, pursuant to the provisions of section 3 (a) (1) of the Administrative Procedure Act, the Board hereby separately states and publishes in the FEDERAL REGISTER the following amendments to its Descriptions of Organization, as published on September 11, 1946.

1. Section 201.3, published on September 11, 1946 (11 F. R. 177A–603), is hereby amended by substituting for the number "22" in the first sentence, the number "21", and by substituting for the word "Twenty" at the beginning of the second sentence the word "Nineteen." As amended, the first two sentences of § 201.3 read as follows:

§ 201.3 *Regional offices; their staffs generally.* The Board has established 21 Regional Offices. Nineteen of these are located in the continental United States, and the remaining two are in the Territories of Hawaii and Puerto Rico. * * *

2. Appendix to Part 201 of the Descriptions of Organization published on September 11, 1946 (11 F. R. 177A–605), is hereby amended as follows:

a. The paragraph designated "Ninth Region" is amended to read as follows:

Ninth region: Cincinnati 2, Ohio, Ingalls Building, Fourth and Vine Streets. Services States of West Virginia, west of the western borders of Wetzel, Doddridge, Lewis, and Webster Counties, and southwest of the southern and western borders of Pocahontas County; Ohio, south of the southern borders of Darke, Miami, Champaign, Union, Delaware, Licking, Muskingum, Guernsey, and Belmont Counties; Kentucky; Indiana, south of the southern borders of Fountain, Tippecanoe, Clinton, Tipton, Grant, Wells, and Adams Counties.

Sub-regional office: 108 E. Washington Building, Indianapolis 4, Indiana.

b. The paragraph designated "Eleventh Region" is stricken in its entirety.

c. The paragraph designated "Thirteenth Region" is amended to read as follows:

Thirteenth region: Chicago 3, Illinois, Midland Building, Room 2200, 176 West Adams Street. Services all of the State of Indiana north of the southern borders of Fountain, Tippecanoe, Clinton, Tipton, Grant, Wells, and Adams Counties; Illinois, north of the northern borders of Edgar, Coles, Shelby, Christian, Montgomery, Macoupin, Greene, Scott, Brown, and Adams Counties; Wisconsin, east of the western borders of Green, Dane, Dodge, Fondulac, Winnebago, Outagamie, and Brown Counties.

d. The paragraph designated "Eighteenth Region" is amended to read as follows:

Eighteenth region: Minneapolis 4, Minnesota, Wesley Temple Building. Services States of Minnesota; North Dakota; South Dakota; Iowa; Wisconsin, west of the western borders of Green, Dane, Dodge, Fondulac, Winnebago, Outagamie, and Brown Counties; these counties in Michigan excluded from the Seventh Region, above.

(Secs. 3, 12, Pub. Law 404, 79th Cong., 60 Stat. 238, 244)

Signed at Washington, D. C., this 24th day of February 1947.

[SEAL] NATIONAL LABOR RELATIONS BOARD,
PAUL M. HERZOG,
Chairman.
JOHN M. HOUSTON,
Member.
JAMES J. REYNOLDS, Jr.,
Member.

[F. R. Doc. 47–2679; Filed, Mar. 21, 1947; 8:47 a. m.]

TITLE 32—NATIONAL DEFENSE

Chapter VIII—Office of International Trade, Department of Commerce

Subchapter B—Export Control

[Amdt. 313]

PART 801—GENERAL REGULATIONS

PROHIBITED EXPORTATIONS

Section 801.2 *Prohibited exportations* is amended as follows:

The list of commodities set forth in paragraph (b) is amended by deleting therefrom all cotton manufactures classified under Department of Commerce Schedule B Nos. 301900 through 318800 inclusive.

This amendment shall become effective March 15, 1947.

(Sec. 6, 54 Stat. 714, 55 Stat. 206, 56 Stat. 463, 58 Stat. 671, 59 Stat. 270, 60 Stat. 215; 50 U. S. C. App. and Sup. 701, 702; E. O. 9630, Sept. 27, 1945, 10 F. R. 12245)

Dated: March 18, 1947.

FRANCIS MCINTYRE,
Deputy Director for Export Control, Commodities Branch.

[F. R. Doc. 47–2686; Filed, Mar. 21, 1947; 8:46 a. m.]

[Amdt. 314]

PART 801—GENERAL REGULATIONS

PROHIBITED EXPORTATIONS

Section 801.2 *Prohibited exportations* is amended as follows:

The list of commodities set forth in paragraph (b) is amended by adding thereto the following commodities:

Dept. of Comm. Sched. B No.	Commodity	Unit	GLV dollar value limits country group	
			K	E
	Steel mill products:			
603000	Boiler plate	Lb	100	25
603110	Other plates, except fabricated (hot and cold rolled included) containing no alloy.	Lb	100	25

Shipments of the commodities added to the list of commodities which were on dock, on lighter, laden aboard an exporting carrier, or in transit to a port of exit pursuant to an actual order for export prior to the effective date of this amendment may be exported under the previous general license provisions.

This amendment shall become effective March 22, 1947.

(Sec. 6, 54 Stat. 714, 55 Stat. 206, 56 Stat. 463, 58 Stat. 671, 59 Stat. 270, 60 Stat. 215; 50 U. S. C. App. and Sup. 701, 702; E. O. 9630, Sept. 27, 1945, 10 F. R. 12245)

Dated: March 18, 1947.

FRANCIS MCINTYRE,
Deputy Director for Export Control, Commodities Branch.

[F. R. Doc. 47-2685; Filed, Mar. 21, 1947; 8:46 a. m.]

Chapter IX—Office of Temporary Controls, Civilian Production Administration

AUTHORITY: Regulations in this chapter unless otherwise noted at the end of documents affected, issued under sec. 2 (a), 54 Stat. 676, as amended by 55 Stat. 236, 56 Stat. 177, 58 Stat. 827, 59 Stat. 658, Pub. Laws 388 and 475, 79th Cong.; E. O. 9024, 7 F. R. 329; E. O. 9040, 7 F. R. 527; E. O. 9125, 7 F. R. 2719; E. O. 9599, 10 F. R. 10155; E. O. 9638, 10 F. R. 12591; C. P. A. Reg. 1, Nov. 5, 1945, 10 F. R. 13714; Housing Expediter's Priorities Order 1, Aug. 27, 1946, 11 F. R. 9507; E. O. 9809, Dec. 12, 1946, 11 F. R. 14281; OTC Reg. 1, 11 F. R. 14311.

PART 1010—SUSPENSION ORDERS

[Suspension Order S-1102]

A. G. ODOM

A. G. Odom of 4416 South Walker Avenue, Oklahoma City, Oklahoma, in December 1946, commenced construction of a commercial building designed as a tourist court of 29 units at 201 Southwest 44th Street, Oklahoma City, Oklahoma, after application for authorization to construct same was made to the Civilian Production Administration in August 1946, at a cost of about $45,000, and denied. The beginning and carrying on of this construction constituted a wilfull violation of Veterans' Housing Program Order 1. This violation has diverted critical materials to uses not authorized by the Civilian Production Administration. In view of the foregoing, it is hereby ordered that:

§ 1010.1102 *Suspension Order No. S-1102.* (a) Neither A. G. Odom, his successors or assigns, nor any other person, shall do any further construction on the premises located at 201 Southwest 44th Street, Oklahoma City, Oklahoma, including the putting up, alteration or completion of any structure located thereon, unless hereafter specifically authorized in writing by the Civilian Production Administration.

(b) A. G. Odom shall refer to this order in any application or appeal which he may file with the Civilian Production Administration for priorities assistance or for authorization to carry on construction.

(c) Nothing contained in this order shall be deemed to relieve A. G. Odom, his successors or assigns, from any restriction, prohibition or provision contained in any other order or regulation of the Civilian Production Administration, except insofar as the same may be inconsistent with the provisions hereof.

Issued this 21st day of March 1947.

CIVILIAN PRODUCTION ADMINISTRATION,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 47-2792; Filed, Mar. 21, 1947; 11:28 a. m.]

Chapter XI—Office of Temporary Controls, Office of Price Administration

PART 1305—ADMINISTRATION

[Rev. Gen. RO 5,[1] Amdt. 19]

FOOD RATIONING FOR INSTITUTIONAL USERS

A rationale for this amendment has been issued simultaneously herewith and has been filed with the Division of the Federal Register.

Revised General Ration Order 5 is amended in the following respects:

1. The title of Article XIX is amended to read as follows: "Miscellaneous Rules and Prohibitions."

2. A new section 19.2 is added to read as follows:

SEC. 19.2 *Interpretations.* (a) Any interpretation of the provisions of this order shall be made in accordance with the provisions of sections 22.20 and 22.21 of Third Revised Ration Order 3.

This amendment shall become effective March 24, 1947.

Issued this 21st day of March 1947.

PHILIP B. FLEMING,
Temporary Controls Administrator.

[1] 11 F. R. 116.

Rationale Accompanying Amendment No. 41 to Third Revised Ration Order 3, Amendment No. 19 to Revised General Ration Order 5, Amendment No. 13 to General Ration Order 8, and Amendment No. 4 to Revised General Ration Order 18

Proposed amendment. These amendments provide a procedure to be followed in rendering official legal interpretations of any of the provisions of Third Revised Ration Order 3, Revised General Ration Order, 5, General Ration Order 8 and Revised General Ration Order 18.

Reason for amendment. The members of the public and the field offices of the Office of Price Administration have been confused with respect to the proper procedure for the issuance of official legal interpretations of the various ration orders. In order to clarify this situation with respect to the issuance of authorized legal interpretations, these amendments specifically provide that official legal interpretations may only be made by the Temporary Controls Administrator, the Commissioner in Washington and by responsible members of the legal staff. The procedure set forth in these amendments with respect to the issuance of official rationing interpretations is similar to that provided for in Procedural Regulation 1 with respect to the issuance of official price interpretations.

[F. R. Doc. 47-2799; Filed, Mar. 21, 1947; 11:33 a. m.]

PART 1305—ADMINISTRATION

[Gen. RO 8,[1] Amdt. 13]

GENERAL PROHIBITIONS, PENALTIES AND CONDITIONS

A rationale for this amendment has been issued simultaneously herewith and has been filed with the Division of the Federal Register.

General Ration Order 8 is amended in the following respect:

1. A new section 2.23 is added to read as follows:

SEC. 2.23 *Interpretations.* (a) Any interpretation of the provisions of this order shall be made in accordance with the provisions of sections 22.20 and 22.21 of Third Revised Ration Order 3.

This amendment shall become effective March 24, 1947.

Issued this 21st day of March 1947.

PHILIP B. FLEMING,
Temporary Controls Administrator.

Rationale Accompanying Amendment No. 41 to Third Revised Ration Order 3, Amendment No. 19 to Revised General Ration Order 5, Amendment No. 13 to General Ration Order 8, and Amendment No. 4 to Revised General Ration Order 18

Proposed amendment. These amendments provide a procedure to be followed

[1] 10 F. R. 860.

in rendering official legal interpretations of any of the provisions of Third Revised Ration Order 3, Revised General Ration Order 5, General Ration Order 8 and Revised General Ration Order 18.

Reason for amendment. The members of the public and the field offices of the Office of Price Administration have been confused with respect to the proper procedure for the issuance of official legal interpretations of the various ration orders. In order to clarify this situation with respect to the issuance of authorized legal interpretations, these amendments specifically provide that official legal interpretations may only be made by the Temporary Controls Administrator, the Commissioner in Washington and by responsible members of the legal staff. The procedure set forth in these amendments with respect to the issuance of official rationing interpretations is similar to that provided for in Procedural Regulation 1 with respect to the issuance of official price interpretations.

[F. R. Doc. 47-2797; Filed, Mar. 21, 1947; 11:31 a. m.]

PART 1305—ADMINISTRATION

[Rev. Gen. RO 18,[1] Amdt. 4]

DISTRIBUTION OF BASES TO CERTAIN FORMER MEMBERS OF THE ARMED FORCES

A rationale for this amendment has been issued simultaneously herewith and has been filed with the Division of the Federal Register.

Revised General Ration Order 18 is amended in the following respect:

1. A new section 6.2 is added to read as follows:

SEC. 6.2 *Interpretations.* (a) Any interpretation of the provisions of this order shall be made in accordance with the provisions of sections 22.20 and 22.21 of Third Revised Ration Order 3.

This amendment shall become effective March 24, 1947.

Issued this 21st day of March 1947.

PHILIP B. FLEMING,
Temporary Controls Administrator.

Rationale Accompanying Amendment No. 41 to Third Revised Ration Order 3, Amendment No. 19 to Revised General Ration Order 5, Amendment No. 13 to General Ration Order 8, and Amendment No. 4 to Revised General Ration Order 18

Proposed amendment. These amendments provide a procedure to be followed in rendering official legal interpretations of any of the provisions of Third Revised Ration Order 3, Revised General Ration Order 5, General Ration Order 8 and Revised General Ration Order 18.

Reason for amendment. The members of the public and the field offices of the Office of Price Administration have been confused with respect to the proper procedure for the issuance of official legal interpretations of the various ration orders. In order to clarify this situation with respect to the issuance of authorized legal interpretations, these amendments specifically provide that official legal interpretations may only be made by the Temporary Controls Administrator, the Commissioner in Washington and by responsible members of the legal staff. The procedure set forth in these amendments with respect to the issuance of official rationing interpretations is similar to that provided for in Procedural Regulation 1 with respect to the issuance of official price interpretations.

[F. R. Doc. 47-2798; Filed, Mar. 21, 1947; 11:32 a. m.]

[1] 11 F. R. 7580, 10215.

PART 1334—SUGAR

[MPR 60,[1] Amdt. 9]

DIRECT CONSUMPTION SUGAR

A statement of the considerations involved in the issuance of this amendment has been issued simultaneously herewith and filed with the Division of the Federal Register.

Maximum Price Regulation 60 is amended in the following respects:

1. Section 2 (a) (1) is amended to read as follows:

(1) *Maximum basis prices.* The maximum basis prices per bag for the following direct-consumption sugars packed in paper bags, 100 pounds net weight, f. o. b. United States seaboard cane sugar refinery nearest freightwise to the point of delivery, shall be as follows:

(i) For sales of fine granulated cane sugar refined in Continental United States, $6.20.

(ii) For sales of fine granulated beet sugar processed in Continental United States, $8.10.

(iii) For sales of fine granulated cane sugar from off-shore areas, domestic or foreign, duty paid, $6.15.

(iv) For sales of turbinado, washed-white or similar sugar from off-shore areas, domestic or foreign, duty paid, for direct consumption, $5.85.

(v) For sales of plantation granulated sugar processed from United States mainland sugar cane, $6.10.

(vi) For sales of direct-consumption sugars other than those provided for above, in this section, processed from United States mainland sugar cane including but not limited to turbinado, plantation white and high-washed sugars, $6.00.

The prices set forth above shall be for those direct-consumption sugars which have customarily been used by the seller as his basis sugars in determining grade and package differentials, and shall be referred to in this regulation as basis sugars. Differentials for other grades and other containers shall be determined pursuant to section 2 (a) (2) below.

NOTE: The maximum basis prices specified above are subject to the specific additions permitted by sections 2 (e) and 2 (f).

2. Section 2 (a) (2) is amended to read as follows:

[1] 10 F. R. 14816; 11 F. R. 1434, 3299, 7036, 13254, 13524, 13695; 12 F. R. 391.

(2) *Grade and package differentials.* (i) The maximum basis prices specified in section 2 (a) (1) above shall be increased for direct-consumption basis sugar packed in containers other than 100 pound paper bags in accordance with the following packaging differentials for such other containers:

Container	Differential (per 100 pounds)
100 pound cotton bag	$0.15
100 pound burlap bag	.15
6 10-pound paper bags (all covers)	.12
12 5-pound paper bags (all covers)	.15
10 10-pound cotton bags (paper cover)	.30
20 5-pound cotton bags (paper cover)	.45
12 5-pound cartons (all covers)	.35
25 2-pound cartons (all covers)	.35
1 pound cartons (all covers)	.65

Differentials for other containers shall be determined pursuant to section 2 (a) (2) (ii) below.

(ii) To determine a packaging differential for direct-consumption basis sugar packed in a container other than a 100 pound paper bag or one listed above in section 2 (a) (2) (i), the seller shall: First, determine the listed container which he sells which is most closely comparable to the one for which a differential is to be established. The most closely comparable container means the container listed above in section 2 (a) (2) (i) which is of the same basic material as, and is closest in size to, the container being priced, or, if there is none of the same basic material, then the one closest in size to the container being priced.

He shall then determine his current direct packaging costs per one hundred pounds of both containers. Current direct packaging costs shall include only the costs of direct labor and direct material.

If the direct packaging costs of the container being priced hereunder are greater than those of the most closely comparable container listed, the seller shall add the amount of the difference to the differential specified for the most closely comparable container listed. If the direct packaging costs of the container being priced hereunder are less than those of the most closely comparable container listed, the seller shall subtract the amount of the difference from the differential specified for the most closely comparable container listed. The resulting figure shall be rounded to the nearest half-cent and shall be the seller's differential for the container being priced. This differential, with supporting data showing how it was determined, shall be reported to the Price Branch, Sugar Department, Office of Price Administration, Office of Temporary Controls, Washington 25, D. C., within 30 days after it is established.

(iii) Maximum prices for sales of grades of direct-consumption sugars other than the direct-consumption basis sugars shall be determined by adjusting the applicable maximum basis price set forth in section 2 (a) (1) above for package and grade differentials in accordance with the seller's differentials therefor published or in effect on December 1, 1941.

(iv) Maximum prices for sales of direct-consumption sugar, other than

direct-consumption basis sugar, by a primary distributor for grades and packages for which he cannot determine a maximum price pursuant to section 2 (a) (2) (iii) above and for which there is no maximum price in effect on March 20, 1947, shall be as follows, *Provided, however,* That nothing contained herein shall be deemed to modify any order issued under, or any provision of, this regulation in effect on March 20, 1947 establishing a maximum price for such grades and packages as of that date.

(*a*) Maximum prices for sales to any Procurement Agency of the United States Government where the grade sold to such procurement agency is identical with one previously produced by the selling primary distributor, but where the packaging is different, shall be determined pursuant to the provisions of Supplementary Order 106 issued by the Office of Price Administration. Where the grade is not identical with one previously produced by the selling primary distributor, he shall determine his maximum price per 100 pounds net weight for such new grade and package by adding to his maximum price per 100 pounds net weight for direct-consumption basis sugar packed in 100 pound paper bags, the difference in direct cost per 100 pounds net weight between manufacturing and packaging the new item and manufacturing and packaging the direct-consumption basis sugar in 100 pound paper bags. Each maximum price determined under the foregoing provisions shall be reported, with a detailed explanation of costs, to the Price Branch, Sugar Department, Office of Price Administration, Office of Temporary Controls, Washington 25, D. C., within 30 days after the first delivery.

(*b*) Maximum prices for sales of a new grade or new package for civilian consumption, which is identical in grade, net weight and packaging material with that of any other primary distributor, shall be determined by adjusting the selling primary distributor's maximum basis price by the use of the same differential properly established on that date by the primary distributor located nearest freightwise to him with such differential.

If the new grade or package to be sold for civilian consumption is not so identical with that produced by another primary distributor he shall obtain a maximum price for it by application to the Price Branch, Sugar Department, Office of Price Administration, Office of Temporary Controls, Washington 25, D. C., in which he shall give full data, with a description of grade and package, detailed production and selling cost differences per 100 pounds net weight, f. o. b. refinery, between the new grade and package and the direct-consumption basis sugar packed in 100 pound paper bags at the date of application, and corresponding figures for his most nearly like grades and packages figured currently and as of December 1, 1941, together with a request for a specific differential. On the basis of this information, the Administrator may issue an order establishing a differential for the new grade or package proportionately in line with existing differentials. After filing the application and pending authorization, sales may be made (*1*) on open billing, or (*2*) on pro forma collection price based on the requested differential with an agreement for refund to the purchaser of such sum as this price may exceed the maximum price when duly established.

3. Section 16 is added to read as follows:

SEC. 16 *Transfers of business or stock in trade.* If the business or stock in trade of a seller subject to this regulation is sold or otherwise transferred on or after March 21, 1947, and the transferee continues the business, the maximum prices of the transferee shall be the same as those which the transferor would have been subject to if no transfer had taken place, and his obligation to keep records sufficient to verify these prices shall be the same. The transferor shall either preserve and make available, or shall turn over to the transferee, all records of transactions prior to the transfer which are necessary to enable the transferee to comply with the record provisions contained in this regulation.

This amendment shall become effective at 12:01 a. m. March 21, 1947.

NOTE: All reporting and record-keeping requirements of this amendment have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Issued this 21st day of March 1947.

PHILIP B. FLEMING,
Temporary Controls Administrator.

Approved: March 19, 1947.

CLINTON P. ANDERSON,
Secretary of Agriculture.

Statement of the Considerations Involved in the Issuance of Amendment No. 9 to Maximum Price Regulation 60

The accompanying amendment establishes specific dollars and cents differentials over basis prices for certain packages of direct consumption sugar and also establishes the 100 pound paper bag as the uniform basis package for all sellers. Sugar sold in these packages accounts for over 90 percent of all direct consumption sugar sold in the United States. For packages of basis direct consumption sugars for which no differentials are established, a formula, which will result in differentials in line with those specifically formulated, is provided. No change has been made, however, in the differentials for various grades of these basis sugars, such as confectioners, powdered, brown, tablet, etc.

Prior to this action, one basis price applied to all sellers, but each seller was required to use the same basis package and the same packaging differential which he himself had established on December 1, 1941. In general, it had been customary for the packaging differentials applied by each seller to approximate the excess packaging cost involved in packing sugar in a particular package. While the actual differentials used varied from the amount of excess cost because of competitive reasons, on the whole there was a demonstrably close relationship between average differential and average excess packaging cost. Thus the application of the "freeze" technique at the inception of MPR 60 froze the differentials at levels definitely representative of the normal business custom.

However, unequal changes in packaging costs, more especially the unequal changes in the cost of packaging materials such as paper and cotton resulted in these frozen differentials no longer having any direct relationship to costs of packaging, nor being representative of normal business practice. As a result of almost universal complaints by members of the industry, this action was instituted to remove the existing inequities and maladjustments.

Dollars and cents differentials, more closely approximating packaging costs, have been established for the predominant packages and the 100 pound paper bag has been established as the basis package. In order to establish uniform differentials it was necessary for all sellers to have a uniform basis package. Prior hereto, since the regulation was silent as to the basis package each seller was frozen to his December 1, 1941 basis. As a result, sellers on the Pacific coast used the 100 pound paper bag, adding a differential when selling in cotton, whereas other sellers were required to use the 100 pound cotton bag deducting a differential when selling in paper.

It was found that under normal conditions the basis bag was the one in which the largest amount of sugar is packed. In 1941 this was predominantly the 100 pound cotton bag, except on the Pacific coast. Since that time the use of cotton has greatly decreased and the 100 pound paper bag has become predominant. Since it is apparent that in the absence of price control the increasing importance of the paper bag would have resulted in its becoming the basis bag, the Administrator has deemed it advisable to so provide in this action.

The establishment of the paper bag as the basis without changing the basis price results in a slight increase in price for those sellers formerly on a cotton basis. However, after careful consideration of all alternatives it was found to be neither administratively feasible nor desirable to alter the basis price at this time.

This action is taken pursuant to the Administrator's authority to make such adjustments in existing price controls as are necessary to correct maladjustments or inequities that would interfere with the effective transition to a peacetime economy. The establishment of a uniform paper basis and of uniform packaging differentials, applicable to all primary producers and in all selling territories, will eliminate a price maladjustment that presently exists.

[F. R. Doc. 47-2800; Filed, Mar. 21, 1947; 11:33 a. m.]

PART 1407—RATIONING OF FOOD AND FOOD PRODUCTS

[3d Rev. RO 3,[1] Amdt. 41]

SUGAR

A rationale for this amendment has been issued simultaneously herewith and

[1] 11 F. R. 177, 14281.

has been filed with the Division of the Federal Register.

Third Revised Ration Order 3 is amended in the following respects:

New sections 22.20 and 22.21 are added to Article XXII of Third Revised Ration Order 3 to read as follows:

SEC. 22.20 *Interpretations.* An interpretation rendered by an officer or employee of the Office of Price Administration with respect to any provision of this order or of General Ration Order 8 of Revised General Ration Order 5 or of Revised General Ration Order 18 or of any order, requirement, or agreement thereunder, will be regarded by the Office of Price Administration as official only if such interpretation was requested and issued in accordance with section 22.21 of this order. Action taken in reliance upon and in conformity with an official interpretation and prior to any revocation or modification thereof or to any superseding thereof by order or amendment, shall constitute action in good faith pursuant to the order, requirement or agreement to which such official interpretation relates. An official interpretation shall be applicable only with respect to the particular person to whom, and to the particular factual situation with respect to which, it is rendered, unless announced as an interpretation of general application.

SEC. 22.21 *Requirements governing interpretations*—(a) *Requests for interpretations; form and contents.* Any person desiring an official interpretation of any sugar rationing regulation, order, requirement or agreement thereunder shall request it in writing from the nearest Sugar Branch Office of the Office of Price Administration. Such request shall set forth in full the factual situation out of which the interpretative question arises and shall, so far as practicable, state the names and post office addresses of the persons involved. If the inquirer has previously requested an interpretation on the same or substantially the same facts, his request shall so indicate and shall name the official or office to whom his previous request was addressed. If the interpretation will affect operations of establishments located in more than one state, the request shall name the states in which the establishments are located. No interpretation shall be requested or given with respect to any hypothetical situation or in response to any hypothetical question.

(b) *Interpretations to be written; authorized officials.* With respect to sugar, official interpretations shall be made only in writing, and shall be signed by the Temporary Controls Administrator or by one of the following officers of the Office of Price Administration: The Commissioner, the General Counsel, an Associate or Assistant General Counsel of the Sugar Department, any Legal Branch Chief of the Sugar Department, or any Regional Sugar Attorney.

(c) *Revocation or modification of interpretation.* Any official interpretation, whether of general application or otherwise, may be revoked or modified by any official authorized to announce such interpretations of general application or by a statement or notice by the Commissioner or General Counsel of the Office of Price Administration. An official interpretation addressed to a particular person may also be revoked or modified at any time by a statement in writing mailed to such person and signed by an Associate or Assistant General Counsel, or by any Legal Branch Chief of the Sugar Department. An official interpretation addressed to a particular person by a Regional Sugar Attorney may also be revoked or modified at any time by a written statement mailed to such person and signed by the attorney, who issued it, or his successor.

(d) This section is applicable not only to Third Revised Ration Order 3, but also to General Ration Order 8, Revised General Ration Order 18, Revised General Ration Order 5 and to any other ration order issued by the Office of Price Administration.

This amendment shall become effective March 24, 1947.

Issued this 21st day of March 1947.

PHILIP B. FLEMING,
Temporary Controls Administrator.

Rationale Accompanying Amendment No. 41 to Third Revised Ration Order 3, Amendment No. 19 to Revised General Ration Order 5, Amendment No. 13 to General Ration Order 8, and Amendment No. 4 to Revised General Ration Order 18

Proposed amendment. These amendments provide a procedure to be followed in rendering official legal interpretations of any of the provisions of Third Revised Ration Order 3, Revised General Ration Order 5, General Ration Order 8 and Revised General Ration Order 18.

Reason for amendment. The members of the public and the field offices of the Office of Price Administration have been confused with respect to the proper procedure for the issuance of official legal interpretations of the various ration orders. In order to clarify this situation with respect to the issuance of authorized legal interpretations, these amendments specifically provide that official legal interpretations may only be made by the Temporary Controls Administrator, the Commissioner in Washington and by responsible members of the legal staff. The procedure set forth in these amendments with respect to the issuance of official rationing interpretations is similar to that provided for in Procedural Regulation 1 with respect to the issuance of official price interpretations.

[F. R. Doc. 47-2796; Filed, Mar. 21, 1947; 11:31 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Subtitle A—Office of the Secretary of the Interior

[Order 2301]

PART 4—DELEGATIONS OF AUTHORITY

MISCELLANEOUS AMENDMENTS

Sections 4.90 and 4.91 are added to Part 4 to read as follows:

§ 4.90 *Condemnation proceedings.* The head of any bureau of this Department may approve and sign correspondence concerning pleadings, awards, or judgments in condemnation proceedings, and any other routine, incidental, or related correspondence regarding the conduct of such proceedings, without the submission of such matters for Secretarial consideration, except that requests for condemnation proceedings and declarations of taking shall be submitted to the Secretary for consideration and approval.

§ 4.91 *Title opinions.* The head of any bureau of this Department may request the Attorney General to render opinions concerning the validity of title pursuant to section 355, Revised Statutes (40 U. S. C. 255), without the submission of such requests to the Secretary for consideration or approval.

(R. S. 161; 5 U. S. C. 22)

J. A. KRUG,
Secretary of the Interior.

MARCH 13, 1947.

[F. R. Doc. 47-2678; Filed, Mar. 21, 1947; 8:45 a. m.]

Chapter I—Bureau of Land Management, Department of the Interior

PART 162—LIST OF ORDERS CREATING AND MODIFYING GRAZING DISTRICTS

NEW MEXICO GRAZING DISTRICT NO. 1

CROSS REFERENCE: For order affecting the tabulation contained in § 162.1, see Public Land Order 356 under the Appendix to this chapter, *infra*, relating to lands within New Mexico Grazing District No. 1.

Appendix—Public Land Orders

[Public Land Order 356]

NEW MEXICO

REVOCATION OF EXECUTIVE ORDER 7544 OF JANUARY 29, 1937

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 7544 of January 29, 1937, withdrawing the following-described public lands in New Mexico for use by the Forest Service of the Department of Agriculture as the Espanola Administrative Site in connection with the administration of the Santa Fe National Forest, is hereby revoked:

NEW MEXICO PRINCIPAL MERIDIAN

T. 20 N., R. 8 E.,
Sec. 12, S½N½ and S½ lot 1, N½ and N½S½ lot 2.
T. 20 N., R. 9 E.,
Sec. 7, lots 5, 6, and E½SW¼.

The areas described aggregate 228.42 acres.

The lands are within New Mexico Grazing District No. 1. This order shall therefore become effective immediately

as to the administration of grazing on the lands by the Bureau of Land Management, but shall not otherwise become effective to change the status of such lands until 10:00 a. m. on May 9, 1947.

At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from May 9, 1947, to August 7, 1947, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from April 19, 1947, to 10:00 a. m. on May 9, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on May 9, 1947, shall be treated as simultaneously filed.

(c) *Date for non-preference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on August 8, 1947, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference right filings.* Applications by the general public may be presented during the 20-day period from July 19, 1947, to 10:00 a. m. on August 8, 1947, inclusive, and all such applications, together with those presented at 10:00 a. m. on August 8, 1947, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office at Santa Fe, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office at Santa Fe, New Mexico.

The lands are rough and broken in topography and have a third to fourth rate soil which supports scant vegetation.

WARNER W. GARDNER,
Assistant Secretary of the Interior.

MARCH 7, 1947.

[F. R. Doc. 47–2680; Filed, Mar. 21, 1947; 8:46 a. m.]

TITLE 46—SHIPPING

Chapter II—United States Maritime Commission

Subchapter F—Merchant Ship Sale Act of 1946

[Gen. Order 60, Amdt. 1 to Supp. 3]

PART 299—RULES AND REGULATIONS, FORMS, AND CITIZENSHIP REQUIREMENTS

PREWAR DOMESTIC COSTS; STATUTORY SALES PRICES

Section 299.56 *Prewar domestic costs; statutory sales prices* is amended by striking out paragraph (m) *Type C1–S–D1* (published in the FEDERAL REGISTER for August 17, 1946, 11 F. R. 8972).

(60 Stat. 41)

By order of the United States Maritime Commission.

A. J. WILLIAMS,
Secretary.

MARCH 7, 1947.

[F. R. Doc. 47–2703; Filed, Mar. 21, 1947; 8:49 a. m.]

PROPOSED RULE MAKING

CIVIL AERONAUTICS BOARD

[14 CFR, Parts 21 and 43]

PERIODIC PHYSICAL EXAMINATIONS FOR MEDICAL CERTIFICATES FOR PILOTS

Section 21.400 of the Civil Air Regulations provides that the holder of an airline transport pilot rating shall not pilot aircraft in flight unless he has met the physical requirements prescribed for such rating within the preceding 6 calendar months. Such a requirement may be interpreted that the holder of such a rating would not be permitted to fly any aircraft unless he has met the physical requirements within the preceding 6 calendar months. Pilots holding a higher pilot rating should be permitted the privilege of performing operations requiring a lower pilot rating. Therefore it is proposed to specifically provide that medical certificates appropriate to the higher pilot ratings will be permitted the privileges of medical certificates appropriate to lower pilot ratings during the period for which they are effective.

Pursuant to section 4 (a) of the Administrative Procedure Act the Safety Bureau of the Civil Aeronautics Board hereby gives notice that the Bureau will propose to the Board amendments to Parts 21 and 43 of the Civil Air Regulations as follows:

1. By amending § 21.400 to read as follows:

§ 21.400 *Periodic physical examination.* A certificated airline transport pilot shall not pilot an aircraft in operations for which he is required to possess an airline transport pilot rating unless, within the preceding 6 calendar months, he has met the physical requirements of this part by passing an examination given by an authorized airline medical examiner of the Administrator.

2. By amending § 43.402 to read as follows:

§ 43.402 *Medical certificate and renewal.* No person shall pilot an aircraft under authority of a pilot certificate issued by the Administrator, unless he has in his personal possession while piloting aircraft a medical certificate or other evidence satisfactory to the Administrator showing that he has met the physical requirements appropriate to his rating within the following time limits:

(a) Student or private pilot: 24 calendar months,

(b) Commercial pilot: 12 calendar months or 24 calendar months for operations requiring only a private pilot rating,

(c) Airline transport pilot: 6 calendar months, or 12 calendar months for operations requiring only a commercial pilot rating, or 24 calendar months for operations requiring only a private pilot rating.

These regulations are proposed under the authority of Title VI of the Civil Aeronautics Act of 1938, as amended.

It is the desire of the Bureau that those interested offer suggestions and comments regarding the proposed amendments. Comments in writing should be addressed to the Safety Bureau, Civil Aeronautics Board, Washington 25, D. C., for receipt within 30 days from the date of this public notice.

(52 Stat. 984, 1007; 49 U. S. C. 425, 551)

By the Safety Bureau.

[SEAL] W. S. DAWSON,
Director.

[F. R. Doc. 47–2694; Filed, Mar. 21, 1947; 8:49 a. m.]

NOTICES

FEDERAL POWER COMMISSION

[Docket No. G–780]

TENNESSEE GAS AND TRANSMISSION CO.

ORDER FIXING DATE OF HEARING

Upon consideration of the application filed on September 23, 1946, in Docket No. G–780, by Tennessee Gas and Transmission Company (Applicant), a Tennessee corporation with its principal place of business at Houston, Texas, for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, as amended, to authorize Applicant to construct and operate the following described natural-gas pipeline facilities subject to the jurisdiction of the Federal Power Commission:

A 12¾-inch O. D. pipeline approximately 7.1 miles in length and extending from a point of connection with Applicant's dehydration facilities at its existing Compressor Station No. 2 in Wharton County, Texas, to a point in the Chesterville Field designated as W. Thompson Survey, Section 16, Abstract No. 708, Colorado County, Texas.

It appearing to the Commission that:

(a) Applicant proposes the construction and operation of the aforesaid described facilities for the purpose of assuring an adequate and dependable gas supply to meet the requirements of its present customers, particularly those serving the Appalachian area; and

(b) This proceeding is a proper one for disposition under the provisions of Rule 32 (b) (18 CFR 1.32 (b)) of the Commission's rules of practice and procedure (effective September 11, 1946), Applicant having requested that its application be heard under the shortened procedure provided by the aforesaid rule for noncontested hearings, and no request to be heard, protest or petition having been filed subsequent to the giving of due notice of the filing of the application, including publication in the FEDERAL REGISTER on October 15, 1946 (11 F. R. 12019);

The Commission, therefore, orders that:

(A) Pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, as amended, and the Commission's rules of practice and procedure (effective September 11, 1946), a hearing be held on the 16th day of April 1947, at 9:30 a. m. (e. s. t.) in the Hearing Room of the Federal Power Commission, 1800 Pennsylvania Avenue NW., Washington, D. C., concerning the matters of fact and law asserted in the application filed in the above-entitled proceedings: *Provided, however,* That if no request to be heard or protest or petition to intervene raising in the judgment of the Commission an issue of substance, has been filed or allowed prior to the date hereinbefore set for hearing, the Commission may after a noncontested hearing forthwith dispose of the proceedings by order upon consideration of the application and the evidence filed therewith and incorporated in the record of the proceedings, together with such additional evidence as may be available or as the Commission may require to be filed and incorporated in the record for its consideration.

(B) Interested State commissions may participate as provided by Rules 8 and 37 (f) (18 CFR 1.6 and 1.37 (f)) of the Commission's rules of practice and procedure (effective September 11, 1946).

Date of issuance: March 18, 1947.

By the Commission.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 47–2690; Filed, Mar. 21, 1947; 8:46 a. m.]

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[P. & S. Docket No. 298]

ST. JOSEPH STOCK YARDS CO.

NOTICE OF PETITION FOR MODIFICATION OF RATES

Pursuant to the provisions of the Packers and Stockyards Act, 1921, as amended (7 U. S. C. 181 et seq.), the Secretary of Agriculture on March 13, 1946, issued an order prescribing reasonable rates and charges for stockyard services rendered by the respondent.

By a petition filed on March 13, 1947, the respondent has requested certain increases in its rates and charges, as follows:

Yardage	Present rates per head	Proposed rates per head
Cattle:		
Rail	$0.49	$0.55
Truck	.56	.60
Direct	.25	.27½
Resale: Commission division	.25	.28
Hogs:		
Rail	.16	.18
Truck	.18	.19
Direct	.08	.09
Resale: Commission division	.08	.09
Sheep:		
Rail	.11	.13
Direct	.06	.06½
Resale: Commission division	.06	.07
Horses and mules:		
Rail	.39	.55
Truck	.46	.60

The proposed increases, if granted, are calculated to result in additional gross revenue to respondent and, therefore, public notice should be given of the filing of such petition in order that all interested persons may have an opportunity to be heard in the matter.

Now, therefore, notice is hereby given to the public and to all interested persons of the filing of such petition for modification.

All interested persons who desire to be heard upon the matter requested in said petition for modification shall notify the Hearing Clerk, United States Department of Agriculture, Washington 25, D. C., within 15 days from the date of the publication of this notice.

Copies hereof shall be served upon the respondent by registered mail or in person.

Done at Washington, D. C. this 18th day of March, 1947.

[SEAL] PRESTON RICHARDS,
Acting Director,
Livestock Branch.

[F. R. Doc. 47–2697; Filed, Mar. 21, 1947; 8:45 a. m.]

INTERSTATE COMMERCE COMMISSION

[S. O. 396, Special Permit 138]

RECONSIGNMENT OF APPLES AT MINNEAPOLIS, MINN.

Pursuant to the authority vested in me by paragraph (f) of the first ordering paragraph of Service Order No. 396 (10 F. R. 15008), permission is granted for any common carrier by railroad subject to the Interstate Commerce Act:

To disregard entirely the provisions of Service Order No. 396 insofar as it applies to the reconsignment at Minneapolis, Minn., February 8, 1947, by Wesco Foods Company, of car FOBX 4004, apples on the Great Northern Railway, to The Crosset Company, Cincinnati, Ohio (GN-CMStP&P-Big 4)

The waybill shall show reference to this special permit.

A copy of this special permit has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this permit shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 14th day of March 1947.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 47–2688; Filed, Mar. 21, 1947; 8:46 a. m.]

[S. O. 396, Special Permit 139]

RECONSIGNMENT OF PERISHABLES AT MINNEAPOLIS, MINN.

Pursuant to the authority vested in me by paragraph (f) of the first ordering paragraph of Service Order No. 396 (10 F. R. 15008), permission is granted for any common carrier by railroad subject to the Interstate Commerce Act:

To disregard entirely the provisions of Service Order No. 396 insofar as it applies to the reconsignment at Minneapolis, Minn., March 17, 1947, by C. H. Robinson Co., of car ART 22222, now on the Nor. Pac. to C. H. Robinson Co., Chicago, Ill. (CB&Q).

The waybill shall show reference to this special permit.

A copy of this special permit has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this permit shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 17th day of March, 1947.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 47-2689; Filed, Mar. 21, 1947; 8:46 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

AUTHORITY: 40 Stat. 411, 55 Stat. 839, Pub. Laws 322, 671, 79th Cong., 60 Stat. 50, 925; 50 U. S. C. and Supp. App. 1, 616; E. O. 9193, July 6, 1942, 3 CFR, Cum. Supp., E. O. 9567, June 8, 1945, 3 CFR, 1945 Supp., E. O. 9788, Oct. 14, 1946, 11 F. R. 11981.

[Vesting Order 8455]

ANTON KLUMPP

In re: Estate of Anton Klumpp, deceased. File No. D-28-10662; E. T. sec. 15014.

Under the authority of the Trading with the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

That the property described as follows:

All right, title, interest and claim of any kind or character whatsoever of Walburg Thoennessen, Frieda Heiser, Wilhelm Klumpp, Franz Klumpp, Friederich Klumpp, Karl Klumpp, Friederich Thoennessen, Walburga Wehemeyer, Maria Brach and Raimund Klumpp, and each of them, in and to the Estate of Anton Klumpp, deceased.

is property payable or deliverable to, or claimed by, nationals of a designated enemy country, Germany, namely,

Nationals and Last Known Address

Walburg Thoennessen, Germany.
Frieda Heiser, Germany.
Wilhelm Klumpp, Germany.
Franz Klumpp, Germany.
Friederich Klumpp, Germany.
Karl Klumpp, Germany.
Friederich Thoennessen, Germany.
Walburga Wehemeyer, Germany.
Maria Brach, Germany.
Raimund Klumpp, Germany.

That such property is in the process of administration by Sanford M. Kirsch, as Substituted Administrator, C. T. A., acting under the judicial supervision of the Essex County Orphans' Court, Newark, New Jersey;

And determined that to the extent that such nationals are persons not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country (Germany);

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 19, 1947.

For the Attorney General.

[SEAL] DONALD C. COOK,
Director.

[F. R. Doc. 47-2701; Filed, Mar. 21, 1947; 8:45 a. m.]

SOCIETE NATIONALE DES CHEMINS DE FER FRANCAIS ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading with the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant	Claim No.	Property and location
Societe Nationale des Chemins de Fer Francais.	5091 5254	$207,199.61 in United States Treasury. $4,817.70 in United States Treasury. 500 photographs, 5 boxes of French railroad tickets in Office of Alien Property Warehouse, New York, N. Y. Approximately 115 35-mm. French films, 39 16-mm. French films with duplicates, 1,000 slides in RKO film vault, Washington, D. C. "Micheline" railcar and trailer at U. S. Customs, Staten Island, N. Y. Property described in the second paragraph of Vesting Order No. 500A-8 (9 F. R. 7876, July 14, 1944), relating to copyrights referred to in Exhibit A thereto, to the extent owned by the claimant immediately prior to the vesting thereof.
Compagnie Du Chemin de Fer de Paris A Orleans.	5089	$30 04 in United States Treasury.
Compagnie Des Chemins de Fer Du Midi.	5090	$613.21 in United States Treasury.
Compagnie Du Chemin de Fer Du Nord.	5092	$66,727.43 in United States Treasury. 84 M Kingdom of Belgium 6 percent bonds due 1/1/55, and 80 M Kingdom of Belgium 6½% Bonds due 9/1/49 in Federal Reserve Bank, New York, N. Y.

Executed at Washington, D. C., on March 19, 1947.

For the Attorney General.

[SEAL] DONALD C. COOK,
Director.

[F. R. Doc. 47-2702; Filed, Mar. 21, 1947; 8:45 a. m.]

OFFICE OF TEMPORARY CONTROLS

Civilian Production Administration

[C-500]

MINOT K. MILLIKEN, RALPH L. WHITE, AND ROLF W. BAUHAN

CONSENT ORDER

Minot K. Milliken of 76 Marlboro Street, Boston, Massachusetts, was authorized by the Federal Housing Administration on June 17, 1946, to excavate, prepare foundations, and to use lumber on hand to start construction of an all-year-round house at Hulls Cove, Maine, at an estimated cost of $5,000. By January 30, 1947, over $40,000 had been expended, of which about $25,000 had been incorporated in the house and about $6,000 had been expended in clearing, blasting, excavating, road work and ditching, the balance representing materials purchased and on hand. Ralph L. White of Hulls Cave, Maine, is the contractor, and Rolf W. Bauhan of Princeton, New Jersey, is the architect who filed the application with the Federal Housing Administration and supervised the project. Construction on this project to an extent substantially in excess of the work and cost originally authorized, constituted a violation of Order VHP-1.

Minot K. Milliken, Ralph L. White, and Rolf W. Bauhan admit the violation as charged and allege that it resulted from a misunderstanding and deny that it was willful, and consent to the issuance of this order.

Wherefore, upon the agreement and consent of Minot K. Milliken, Ralph L. White, and Rolf W. Bauhan, the Regional Compliance Director, and the Regional Attorney, and upon the approval of the Compliance Commissioner, *It is hereby ordered,* That:

(a) Neither Minot K. Milliken, Ralph L. White, nor Rolf W. Bauhan, their successors or assigns, nor any other person shall do any further construction on the project owned by Minot K. Milliken located at Hulls Cove, Maine, unless hereafter specifically authorized in writing by the Civilian Production Administration and the Federal Housing Administration.

(b) The provisions of paragraph (a) above shall not apply to work specifically authorized by the Civilian Production Administration under Serial No. 1-3-964, dated February 25, 1947 to prevent deterioration of materials already incorporated into the structure

(c) Minot K. Milliken, Ralph L. White, and Rolf W. Bauhan shall refer to this order in any application or appeal which they may file with the Civilian Production Administration or any other federal

agency to do any further construction on this project.

(d) Nothing contained in this order shall be deemed to relieve Minot K. Milliken, Ralph L. White, and Rolf W. Bauhan, their successors and assigns, from any restriction, prohibition or provision contained in any other order or regulation of the Civilian Production Administration, except insofar as the same may be inconsistent with the provisions hereof.

(e) This order shall take effect on the date of issuance.

Issued this 21st day of March 1947.

CIVILIAN PRODUCTION ADMINISTRATION,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 47-2795; Filed, Mar. 21, 1947; 11:28 a. m.]

[C-498]

HAROLD NUSSBAUM

CONSENT ORDER

Harold Nussbaum, 403 South St. Clair Street, Toledo, Ohio, is charged by the Civilian Production Administration with violating Veterans' Housing Program Order No. 1 in that on or about November 15, 1946, he began construction and thereafter carried on and participated in the construction of an outdoor drive-in theater consisting of two buildings, located at the northwest corner of the intersection of Ohio State Routes 30 south and 314, eight miles west of Mansfield, Ohio, at a cost of $9,000, without the authorization of the Civilian Production Administration.

Harold Nussbaum admits the violation as charged and has consented to the issuance of this order.

Wherefore, upon the agreement and consent of Harold Nussbaum, the Regional Compliance Director, and the Regional Attorney, and upon the approval of the Compliance Commissioner, *It is hereby ordered*, That:

(a) Neither Harold Nussbaum, his successors and assigns, nor any other person shall do any further construction on the outdoor drive-in theater located at the northwest corner of the intersection of Ohio State Routes 30 south and 314, eight miles west of Mansfield, Ohio, including the completing or altering of the two buildings or any other part of said outdoor drive-in theater, unless hereafter specifically authorized in writing by the Civilian Production Administration.

(b) Harold Nussbaum shall refer to this order in any application or appeal which he may file with the Civilian Production Administration for priorities assistance or for authority to carry on construction.

(c) Nothing contained in this order shall be deemed to relieve Harold Nussbaum, his successors and assigns, from any provision contained in any other order or regulation of the Civilian Production Administration, except insofar as the same may be inconsistent with the provisions hereof.

Issued this 21st day of March 1947.

CIVILIAN PRODUCTION ADMINISTRATION,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc 47-2793; Filed, Mar 21, 1947; 11:28 a. m.]

[C-495]

CARMELLO LOPRESTI

CONSENT ORDER

Carmello LoPresti, 2479 East 126th Street, Cleveland, Ohio, is charged by the Civilian Production Administration with violating Veterans' Housing Program Order 1, in that on or about February 4, 1947 he began construction and thereafter carried on and participated in construction in connection with the remodeling and altering of a commercial building for use as a cafe, located at 6013 Woodland Avenue, Cleveland, Ohio, at a cost in excess of $1,000, wthout authorization of the Civilian Production Administration.

Carmello LoPresti admits the violation as charged and has consented to the issuance of this order.

Wherefore, upon the agreement and consent of Carmello LoPresti, the Regional Compliance Director and the Regional Attorney, and upon the approval of the Compliance Commissioner, *It is hereby ordered*, That:

(a) Neither Carmello LoPresti, his successors and assigns, nor any other person shall do any further construction on the commercial building located at 6013 Woodland Avenue, Cleveland, Ohio, including the completing and altering the commercial building located on said premises unless hereafter specifically authorized in writing by the Civilian Production Administration.

(b) Carmello LoPresti shall refer to this order in any application or appeal which he may file with the Civilian Production Administration for priorities assistance or for authority to carry on construction.

(c) Nothing contained in this order shall be deemed to relieve Carmello LoPresti, his successors and assigns, from any restriction, prohibition, or provision contained in any other order or regulation of the Civilian Production Administration, except insofar as the same may be inconsistent with the provisions hereof.

Issued this 21st day of March 1947.

CIVILIAN PRODUCTION ADMINISTRATION,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 47-2794; Filed, Mar. 21, 1947; 11:28 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 7-978]

ST. LOUIS-SAN FRANCISCO RAILWAY CO.

NOTICE OF APPLICATION FOR UNLISTED TRADING PRIVILEGES, AND OF OPPORTUNITY FOR HEARING

At a regular session of the Securities and Exchange Commission, held at its office in the City of Philadelphia, Pa., on the 18th day of March A. D. 1947.

The Boston Stock Exchange, pursuant to section 12 (f) (2) of the Securities Exchange Act of 1934 and Rule X-12F-1 thereunder, has made application for unlisted trading privileges in the Voting Trust Certificates for Common Stock, No Par Value, of the St. Louis-San Francisco Railway Company Voting Trust, Expiring January 1, 1952, a security listed and registered on the New York Stock Exchange.

Rule X-12F-1 provides that the applicant shall furnish a copy of the application to the issuer and to every exchange on which the security is listed or already admitted to unlisted trading privileges. The application is available for public inspection at the Commission's principal office in Philadelphia, Pennsylvania.

Notice is hereby given that, upon request of any interested person received prior to April 1, 1947, the Commission will set this matter down for hearing. In addition, any interested person may submit his views or any additional facts bearing on this application by means of a letter addressed to the Secretary of the Securities and Exchange Commission, Philadelphia, Pennsylvania. If no one requests a hearing on this matter, this application will be determined by order of the Commission on the basis of the facts stated in the application, and other information contained in the official file of the Commission pertaining to this matter.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 47-2681; Filed, Mar. 21, 1947; 8:46 a. m.]

[File No. 70-1469]

ALLENTOWN-BETHLEHEM GAS CO.

NOTICE REGARDING FILING

At a regular session of the Securities and Exchange Commission, held at its office in the City of Philadelphia, Pennsylvania, on the 17th day of March 1947.

Notice is hereby given that an application has been filed with this Commission pursuant to the Public Utility Holding Company Act of 1935 by Allentown-Bethlehem Gas Company ("Allentown"), a public utility subsidiary of The United Gas Improvement Company, a registered holding company. Applicant designates section 6 (b) of the act and Rule U-50 as applicable to the proposed transactions.

Notice is further given that any interested person may, not later than March 28, 1947, at 5:0 p. m., e. s. t., request the Commission in writing that a hearing be given on such matter, stating the nature of his interest, the reasons for such request and the issues, if any, of fact or law raised by said application proposed to be controverted, or may request that he be notified if the Commission should order a hearing thereon. At any time thereafter, such application, as filed or as amended, may be granted as provided in Rule U-23 of the rules and regulations promulgated pursuant to said act, or the Commission may exempt such transaction as provided in Rule U-20 (a) and U-100 thereof. Any such request should be addressed: Secretary, Securities and Exchange Commission, 18th and Locust Streets, Philadelphia 3, Pa.

All interested persons are referred to said application, which is on file in the office of the Commission, for a statement of the transaction therein proposed which is summarized below:

Allentown has presently outstanding $2,415,000 principal amount of First Mortgage Bonds, 3¾% Series due 1965, all of which are owned by five life insurance companies and two savings banks. In lieu of refunding said bonds, Allentown proposes to reduce the interest rate on said bonds to 3% per annum effective March 1, 1947. The holders of said bonds have voluntarily assented to this proposal.

Allentown, for reasons set forth in the application, requests the Commission to exempt the proposed transaction from the competitive bidding requirements of Rule U-50.

The proposed transaction is subject to the jurisdiction of the Pennsylvania Public Utility Commission and its approval has been obtained.

The applicant requests that the Commission's order granting the application become effective not later than March 31, 1947.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 47-2682; Filed, Mar. 21, 1947; 8:45 a. m.]

[File No. 70-1468]

DETROIT EDISON CO.

ORDER PERMITTING DECLARATION TO BECOME EFFECTIVE

At a regular session of the Securities and Exchange Commission held at its office in the City of Philadelphia, Pa., on the 17th day of March 1947.

The Detroit Edison Company ("Detroit Edison"), a public utility subsidiary of American Light & Traction Company, a registered holding company, which is in turn a subsidiary of The United Light and Railways Company, also a registered holding company, having filed a declaration and an amendment thereto under sections 6 (a) and 7 of the Public Utility Holding Company Act of 1935 regarding the issuance to its common stockholders of a ten percent dividend in its own common capital stock; and

A public hearing having been held thereon after appropriate notice, and the Commission having examined the record, and having filed its findings and opinion herein:

It is ordered, That said declaration as amended be, and the same hereby is, permitted to become effective forthwith, subject to the terms and conditions contained in Rule U-24.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 47-2684; Filed, Mar. 21, 1947; 8:45 a. m.]

[File No. 31-425]

AMERICAN GAS AND ELECTRIC CO.

ORDER GRANTING APPLICATION

At a regular session of the Securities and Exchange Commission, held at its office in the City of Philadelphia, Pennsylvania, on the 17th day of March A. D. 1947.

American Gas and Electric Company (American Gas), a registered holding company, having filed an application pursuant to section 2 (a) (8) of the Public Utility Holding Company Act of 1935 for an order declaring it not to be a subsidiary of Electric Bond and Share Company (Bond and Share), also a registered holding company; and

The Commission having, by order dated May 13, 1941, denied said application being unable to find upon the facts in the record that American Gas was entitled to the requested exemption; and

American Gas having filed an application renewing its request for an order under section 2 (a) (8) declaring it not to be a subsidiary of Bond and Share, stating in such application that Bond and Share has recently sold and distributed a large amount of its holdings of the outstanding voting securities of American Gas with the result that Bond and Share now owns less than 1% of the voting securities of American Gas, and that upon the consummation by Bond and Share of its commitments under Plan II–A filed by Bond and Share and approved by the Commission by order dated September 5, 1946 Bond and Share will own none of the voting securities of American Gas; that the representative of Bond and Share on the Board of Directors of American Gas has resigned; and that American Gas is not controlled directly or indirectly by Bond and Share nor subject to a controlling influence of Bond and Share; and

It appearing to the Commission that the circumstances which gave rise to the Commission's order of May 13, 1941, denying said application of American Gas have changed materially and that it is appropriate in the light of the facts contained in the application of American Gas renewing its application for an order under section 2, (a) (8), that said order of May 13, 1941 be revoked and that an order be entered granting said application of American Gas:

It is ordered, That (a) said order of May 13, 1941, in so far as it denied American Gas' application for an order declaring it not to be a subsidiary of Bond and Share, be, and the same is hereby, revoked, and (b) said renewed application of American Gas for an order declaring that it is not a subsidiary of Bond and Share be, and the same hereby is, granted.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 47-2683; Filed, Mar. 21, 1947; 8:45 a. m.]